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SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,** Defendants.	**Case No. STK-CV-UF-2026-0001032** **PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF OPPOSITION TO DEMURRER TO FIRST AMENDED COMPLAINT** [Evid. Code §§ 452, 453, 459] Time: 9:00 a.m. Dept.: 10A Judge: Hon. George J. Abdallah Complaint Filed: Feb. 10, 2026 Trial Date: TBD

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that, pursuant to California Evidence Code sections 452, 453, and 459, Plaintiff BRENDAN NGEHSI NEWANFORBI respectfully requests that this Court take judicial notice of the documents and matters set forth below in connection with the hearing on Defendants' demurrer to Plaintiff's First Amended Complaint.

Each document is a record of a California court, a duly adopted regulation, an official act of a California public agency, or a publication of an official state board, and each is the proper subject of judicial notice. Copies of the requested documents are attached as Exhibits A through E.

I. INTRODUCTION AND PURPOSE OF THIS REQUEST

Plaintiff requests judicial notice of court records, official acts of state agencies, and regulatory provisions that bear directly on the legal sufficiency of the First Amended Complaint ("FAC"). The noticed materials establish four matters that are independent of, and dispositive against, Defendants' demurrer arguments:

(1) A California Superior Court has already found, on a sworn evidentiary record that included testimony from HOPE's own Executive Director of Clinical Training, that HOPE's blanket retention policy "vitiates the Legislature's directive" under Penal Code section 3008(d)(2);

(2) Another California Superior Court overruled CDCR's demurrer in a systemic challenge to CDCR's indefinite-retention policy under Penal Code section 3008, confirming that civil writ and declaratory remedies — not habeas — are the proper vehicles for systemic policy challenges;

(3) Effective April 17, 2025, California regulators amended Title 15, California Code of Regulations, section 3574(f)(1) to require expressly that "[t]reatment completion and parole discharge are legally separate decisions" — a regulation Defendants violated by the November 2025 1502-DR review and continue to violate today; and

(4) The Alameda County Probation Department Procurement Contract No. 26374 (First Amendment, Jan. 9, 2024) establishes the per-session billing rates that govern CASOMB outpatient providers in this region — demonstrating Defendants' direct fee-for-service financial incentive to retain each parolee indefinitely.

These materials are **not** offered for the truth of any disputed hearsay statement, factual

finding, or clinical opinion. They are offered solely for the limited purposes for which judicial notice is permissible: (a) the existence and legal effect of court orders (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1565); (b) the existence and content of duly adopted regulations and official acts (Evid. Code § 452(b), (c)); and (c) the fact that public records and judicial opinions placed Defendants on actual notice of the unlawfulness of their conduct (*People v. Woodell* (1998) 17 Cal.4th 448, 455).

II. DOCUMENTS REQUESTED TO BE NOTICED

Exhibit A — Order in In re Frederick Dwyer, San Mateo County Superior Court Case No. SC-080355A (Hon. Susan Jakubowski / Hon. Lisa Novak; Order entered March 20, 2023).

Authority: Evid. Code §§ 452(d) (records of any court of this state) and 453 (mandatory notice on proper request). Plaintiff also requests notice under section 452(h) as a fact not reasonably subject to dispute and capable of immediate, accurate determination by resort to a court order of indisputable accuracy.

Relevance: The Dwyer order documents — on an evidentiary record that included sworn testimony from HOPE's own Executive Director of Clinical Training (Dr. Cristina Loree) — that HOPE "believes a continuous connection to treatment is required for all sex offender parolees" and that HOPE's "aftercare" phase is "mandatory for those who have not yet discharged from parole." The Dwyer court further concluded that the CASOMB provider position — that a parolee cannot successfully "complete" treatment short of being discharged from parole — "vitiates the Legislature's directive that program participation should last at least one year and 'up to' the entire parole term." (Dwyer Order, pp. 10–11.) The Dwyer order is not offered for the truth of any clinical characterization but to establish: (a) the existence of HOPE's blanket retention policy as a corporate position taken under oath; (b) HOPE's actual knowledge, no later than March 20, 2023,

that a California court had judicially condemned that policy; and (c) HOPE's consequent scienter, malice, and conscious disregard supporting fraud and punitive damages.

Exhibit B — Order Overruling Demurrer in Alliance for Constitutional Sex Offense Laws, Inc. v. Macomber, Los Angeles County Superior Court Case No. 23STCP02378 (Hon. Mitchell L. Beckloff; Dec. 13, 2023).

Authority: Evid. Code §§ 452(d), 453.

Relevance: The Macomber order overrules CDCR's demurrer to a petition alleging that "in conflict with Penal Code section 3008, subdivision (d), CDCR regulations, policy, and practice do not allow registrants to complete and discontinue the management program prior to discharge from parole." Macomber confirms three points decisive against Defendants' demurrer: (a) systemic challenges to CDCR's indefinite-retention scheme proceed by civil writ of mandate and declaratory relief, not exclusively by habeas corpus; (b) the exhaustion question turns on the adequacy of the administrative remedy, which is inadequate for systemic policy challenges; and (c) the underlying §3008(d) issue is justiciable at the pleading stage. Plaintiff cites Macomber as persuasive authority and as further notice to Defendants that their retention model had been called into question by another superior court no later than December 2023.

Exhibit C — Title 15, California Code of Regulations, section 3574, as amended effective April 17, 2025 (relevant excerpts of subdivision (f), including § 3574(f)(1)).

Authority: Evid. Code § 452(b) (regulations and legislative enactments issued by or under the authority of any public entity in the United States); Evid. Code § 451(a) (decisional, constitutional, and public statutory law).

Relevance: Title 15 CCR § 3574(f)(1), as amended effective April 17, 2025, provides that "[t]reatment completion and parole discharge are legally separate decisions." This regulation governs the November 19, 2025 1502-DR review pleaded in the FAC. The regulation is offered for two purposes: (a) to establish the regulatory duty for purposes of Plaintiff's negligence-per-se theory under Evidence Code section 669 and *Elsner v. Uveges* (2004) 34 Cal.4th 915, 927–928; and (b) to demonstrate that Defendants' blanket retention practice — which collapses treatment completion into discharge from parole — is per se unlawful for purposes of the Unfair Competition Law (Bus. & Prof. Code § 17200) and the Bane Act (Civ. Code § 52.1).

Exhibit D — Alameda County Probation Department Procurement Contract No. 26374, First Amendment (approved Jan. 9, 2024) (relevant billing-rate provisions).

Authority: Evid. Code § 452(c) (official acts of the legislative, executive, and judicial departments of any state); § 452(h) (facts not reasonably subject to dispute capable of immediate and accurate determination from sources of indisputable accuracy).

Relevance: The Alameda contract is an official act of a California county Board of Supervisors and Probation Department setting the per-unit billing rates for CASOMB outpatient services in this region — including $100.00 per 90-minute group session, $100.00 per Containment Team Meeting ("CTM") per client, and $200.00 per individual psychotherapy session. The contract documents Defendants' fee-for-service revenue structure and the absence of any completion incentive. Plaintiff offers the contract not for the truth of any clinical assertion but to establish: (a) the public, undisputed regional pricing baseline applicable to HOPE; (b) Defendants' direct financial motive to misrepresent treatment status (relevant to fraud, intent, malice, and the "unfair" prong of UCL); and (c) the corporate-managing-agent ratification of a profit-driven retention structure for purposes of Civil Code section 3294(b).

Exhibit E — California Sex Offender Management Board (CASOMB) Treatment Completion Guidelines (2018) and Maintenance & Aftercare Guidelines (September 2024) (relevant excerpts).

Authority: Evid. Code § 452(c) (official acts of California executive branch); § 452(h) (facts of indisputable accuracy from official sources). The CASOMB guidelines are publications of a California state board established by Penal Code section 9000 et seq.

Relevance: The CASOMB Treatment Completion Guidelines (2018) and Maintenance & Aftercare Guidelines (September 2024) set the official standard of care for CASOMB-certified outpatient providers, including HOPE. Among other things, the Maintenance & Aftercare Guidelines provide that "discharge planning starts at intake" and that "the final determination regarding whether an individual has 'completed' treatment should never come as a surprise to the client." The Guidelines are offered to establish the applicable standard of care for the negligence cause of action and, in conjunction with Title 15 CCR § 3574(f)(1), the duty whose breach is alleged for negligence per se.

III. LEGAL AUTHORITY FOR JUDICIAL NOTICE

A. Court records — Exhibits A and B.

Evidence Code section 452(d) authorizes the Court to take judicial notice of "[r]ecords of (1) any court of this state." The Dwyer (San Mateo Superior Court) and Macomber (Los Angeles Superior Court) orders are both records of California superior courts. Judicial notice of court records properly includes the existence of the order, the identity of the parties and counsel, the procedural posture, and the legal effect of the ruling. (*People v. Woodell* (1998) 17 Cal.4th 448, 455; *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.) The Court may also notice the legal reasoning of those orders as the reasoning of a

court of this state. (*Mangini v. R. J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063.)

Plaintiff does **not** request that the Court take judicial notice of any disputed factual finding in either order "for the truth" of that finding. (See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1565 [court may not take judicial notice of truth of hearsay statements or factual findings in other court records].) Plaintiff requests notice only of (a) the orders' existence and legal effect, (b) their reasoning as the reasoning of California superior courts, and (c) the fact that those orders were entered on specified dates, placing Defendants on judicially noticeable notice of the rulings.

B. Regulations — Exhibit C.

Evidence Code section 452(b) authorizes notice of "[r]egulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States." Title 15, California Code of Regulations, section 3574 is a duly adopted state regulation governing CDCR Sex Offender Management Program contractors. Section 453 makes notice mandatory upon proper request with adequate notice to the adverse party. (*Ross v. Creel Printing & Publishing Co.* (2002) 100 Cal.App.4th 736, 743.)

C. Official acts of state agencies — Exhibits D and E.

Evidence Code section 452(c) authorizes notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state." The Alameda County contract is an executed procurement contract approved by the Alameda County Board of Supervisors and executed by the Alameda County Probation Department — both California public-agency actors. (*Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 607–608.) The CASOMB Guidelines are publications of a California executive-branch board and are properly noticed as official acts. (*Friends of Shingle Springs Interchange, Inc. v. County of El Dorado* (2011) 200 Cal.App.4th 1470, 1483.)

D. Facts of indisputable accuracy — Exhibits D and E in the alternative.

To the extent the Court declines to treat Exhibits D and E as official acts, judicial notice is independently proper under Evidence Code section 452(h) because the contents are facts not reasonably subject to dispute and capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy — namely, the Alameda County contract registry and the official CASOMB website maintained by the California Department of Justice.

IV. THE NOTICED MATERIALS DEFEAT THE DEMURRER

A. The Dwyer order defeats Defendants' "no scienter" arguments and supports punitive damages.

Defendants' demurrer treats Palacios's "non-completion" reports as good-faith clinical opinions. The Dwyer order — entered more than two and a half years before the November 2025 1502-DR — documents that HOPE's own Executive Director of Clinical Training admitted under oath that HOPE applies a uniform, system-wide retention rule, not an individualized clinical determination. A California court has already characterized that policy as one that "vitiates the Legislature's directive." Continuing to apply the same policy to Plaintiff after Dwyer is, at a minimum, conscious disregard sufficient to plead malice and oppression under Civil Code section 3294. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895–896.) On demurrer, the Court need not — and may not — weigh that scienter showing; it need only ask whether the noticed Dwyer order, taken with the FAC's specific allegations, is consistent with the pleaded theory. It plainly is.

B. The Macomber order defeats the "must be habeas" and exhaustion arguments.

Macomber confirms that systemic challenges to the §3008(d) retention regime proceed through ordinary civil litigation (writ of mandate, declaratory relief, and damages claims against

private actors), not exclusively through habeas. Defendants' demurrer argument that Plaintiff "must" proceed by habeas is squarely contrary to the Macomber ruling and to the longstanding rule that habeas corpus cannot lie against private parties and cannot award damages. (*Wilkinson v. Dotson* (2005) 544 U.S. 74, 82; *In re Estrada* (1996) 47 Cal.App.4th 1688, 1693.) Similarly, the absence of any available administrative remedy for damages against a private contractor (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1023) is independently dispositive against the exhaustion defense.

C. Section 3574(f)(1) supplies the regulatory duty for negligence per se and UCL "unlawful."

Effective April 17, 2025 — months before the November 19, 2025 discharge review — California regulators expressly provided that "[t]reatment completion and parole discharge are legally separate decisions." Defendants' policy of refusing to certify completion until discharge from parole collapses the two decisions in direct violation of the regulation. That violation triggers the presumption of negligence per se under Evidence Code section 669 and supplies the "unlawful" predicate under Business & Professions Code section 17200. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.)

D. The Alameda contract documents the financial motive central to fraud, UCL "unfair," and puni

The contract sets the per-unit prices that govern Defendants' revenue stream: $100.00 per group session, $100.00 per CTM per client, and $200.00 per individual session. Two group sessions per week alone generate $10,400 in baseline annual revenue per client; over a ten-year parole term, that is more than $106,000 in revenue that terminates the moment a parolee successfully discharges. This is precisely the kind of perverse fee-for-service structure that California courts treat as substantively "unfair" under the UCL when paired with a policy that makes completion structurally unattainable. (*Bardin v. DaimlerChrysler Corp.* (2006) 136 Cal.App.4th 1255, 1268; *Drum v. San Fernando Valley Bar Assn.* (2010) 182 Cal.App.4th 247,

257.)

E. The CASOMB Guidelines supply the standard of care for negligence.

The CASOMB Guidelines establish that "discharge planning starts at intake" and that completion determinations "should never come as a surprise to the client." Those official-agency standards supply the professional standard of care applicable to CASOMB-certified outpatient providers like HOPE. (*Landeros v. Flood* (1976) 17 Cal.3d 399, 408–409 [official agency standards as evidence of professional standard of care].) Defendants' alleged failure to provide any objective completion criteria, any appeal process, or any meaningful discharge-planning runs squarely against those standards.

V. LIMITED-PURPOSE INSTRUCTION REQUESTED

Plaintiff respectfully requests that, in granting this Request, the Court enter an express order specifying that judicial notice is taken **only** for the limited, non-hearsay purposes set forth above and that the Court is **not** taking judicial notice of (a) the truth of any clinical opinion, hearsay statement, or contested factual finding contained within any noticed document, or (b) any propensity, character, or credibility inference about Plaintiff. (*Sosinsky v. Grant*, supra, 6 Cal.App.4th at 1565; *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.) A limited-purpose order avoids any risk of converting this demurrer into a contested evidentiary hearing. (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374.)

VI. NOTICE TO DEFENDANTS

Pursuant to Evidence Code section 453, Plaintiff has provided copies of each requested document and has served this Request, together with all attached exhibits, on Defendants' counsel of record at the time of service of the opposition papers. Defendants have adequate notice and

opportunity to respond.

VII. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court take judicial notice of Exhibits A through E for the limited purposes set forth above, and consider those materials in connection with the hearing on Defendants' demurrer to the First Amended Complaint.

Dated: May 22, 2026

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

INDEX OF EXHIBITS

Exhibit A — Order in In re Frederick Dwyer, San Mateo County Superior Court Case No. SC-080355A, entered March 20, 2023 (already attached to the First Amended Complaint as Exhibit A; resubmitted herewith for the convenience of the Court).

Exhibit B — Order Overruling Demurrer in Alliance for Constitutional Sex Offense Laws, Inc. v. Macomber, Los Angeles County Superior Court Case No. 23STCP02378 (Beckloff, J.; Dec. 13, 2023).

Exhibit C — Title 15, California Code of Regulations, section 3574 (amended eff. April 17, 2025), relevant excerpts of subdivision (f), including § 3574(f)(1).

Exhibit D — Alameda County Probation Department Procurement Contract No. 26374, First Amendment (approved Jan. 9, 2024), relevant billing-rate provisions (already attached to the First Amended Complaint as Exhibit B; resubmitted herewith for the convenience of the Court).

Exhibit E — California Sex Offender Management Board (CASOMB) Treatment Completion
Guidelines (2018) and Maintenance & Aftercare Guidelines (September 2024), relevant excerpts.

EXHIBIT A

ENDORSED FILED
SAN MATEO COUNTY

MAR 2 0 2023

Clerk of the Superior Court
By VALERIE HRONIS
DEPUTY CLERK

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN MATEO

In re:	Case No. SC-080355A
	HC-3020
FREDERICK DWYER.	
On Habeas Corpus.	**ORDER**

FACTS AND ALLEGATIONS

On January 23, 2015, Petitioner pled no contest to one count of Penal Code section (PC §) 286(c)(2) (sodomy by force). He also admitted allegations pursuant to Penal Code section 1192.7(c)(4) and 667.5(c)(4) (admitting that the current offense was serious and violent). On March 10, 2015, the Court denied probation and sentenced Petitioner to the lower term of three years in the California Department of Corrections and Rehabilitation. As a condition of sentence, Petitioner was ordered to register pursuant to the terms of Penal Code § 290.

Petitioner was released on parole in 2017. Among other conditions, he was ordered as a special condition of parole to participate in a sex offender management program as required by Penal Code § 3008(d). In the present writ before the court, Petitioner challenges the continued imposition of the special condition of parole on two grounds: 1) that he has already successfully completed a sex offender management program as required, but is currently being ordered to complete a second program; and 2) he asks the court to exercise its discretion pursuant to Penal

Code § 3008(d) to limit the length of the sex offender management treatment program to a term less than the entire term of his parole.

Petitioner submitted his writ petition on June 22, 2021 in Alameda County Superior Court. The People, through the Attorney General, submitted an informal response requesting denial of the petition on August 20, 2021. Petitioner filed a reply on August 27, 2021. The Honorable Morris Jacobson ordered the writ petition transferred to San Mateo County Superior Court on October 22, 2021, finding that venue was more appropriate in the committing court. This Court issued an order to show cause on January 13, 2022. Respondent filed their return on April 14, 2022, and Petitioner filed a Traverse and Denial on May 11, 2022. This Court issued an order for evidentiary hearing on disputed facts on October 20, 2022. The hearing was continued and ultimately heard on March 9, 2023. Petitioner testified on his own behalf. Respondent presented the testimony of Dr. Cristina Loree, Gilberto Haro, and Daniel Stout. The parties stipulated to the admission of each of their marked exhibits. The Court has considered all filed written pleadings, all admitted exhibits, the testimony of each witness, and the arguments of counsel in rendering the following decision.

DISCUSSION

I. Factual Findings

The facts established at the evidentiary hearing in this matter are largely undisputed. Pursuant to the parties' written stipulation filed March 2, 2023, Petitioner was released on parole on May 30, 2017. He has suffered one parole violation to date in September 2019 for a physical altercation with his wife. The altercation did not result in the filing of a new criminal case, and Petitioner's parole violation resulted in a custodial sanction of six days. Petitioner has otherwise complied with his parole conditions, and has been recommended for early discharge from parole. The Board of Parole Hearings denied the recommended early discharge because Petitioner has not yet served the minimum term of parole required for his commitment offense.

Pursuant to a special condition of parole, Petitioner is required to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program.

The program will require you to agree and sign necessary documents and waivers as well as polygraph examinations, limited to questions about the success of the sex offender treatment program, the crime(s) for which you were convicted, compliance with conditions of parole, sexual history and related criminal behavior past, present, and/or future." (Exhibit 3H). At the time of Petitioner's release on parole, the Division of Adult Parole Operations in Petitioner's area of supervision contracted with a program called Shaping Success. Shaping Success is a California Sex Offender Management Board (CASOMB) approved sex offender management program. The evidence at the hearing established that the Shaping Success program consisted of a "treatment" phase and a "maintenance" phase. During the treatment phase, Petitioner testified that he was initially required to participate in weekly group meetings and individual monthly counseling sessions with Shaping Success. He participated in treatment with Shaping Success for three years. On January 12, 2021, the Shaping Success program issued a "Statement of Successful Treatment Completion" regarding Petitioner's treatment. (Exhibit 9H). The certificate stated, in relevant part on its face, that:

> [t]he term 'successful treatment completion' is defined as having 'demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan' at the time of release from treatment. … Treatment completion does not mean that the client has successfully completed the sex offender management program, or that the client will never reoffend. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow-up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e., CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

At the completion of the "treatment" phase of Shaping Success, Petitioner was moved into the "maintenance" phase of the program. Petitioner testified that in the "maintenance" phase, he was no longer required to attend any group sessions and his individual sessions were reduced to once a month. He was also required to participate in annual polygraph examinations.

After Petitioner had completed the treatment phase of Shaping Success, the Division of Adult Parole Operations contracted with a new CASOMB provider for sex offender

management – the HOPE program. Petitioner was required to participate in treatment at the HOPE program beginning on March 5, 2021. (Exhibit 6H). Dr. Cristina Loree, Executive Director of Clinical Training and Development at the HOPE Program, testified that HOPE's sex offender management program consists of four phases. When participants first report to the program, the program administers static and dynamic risk assessment tools and obtains a full biopsychosocial history of the participant. Clients are referred to treatment based on their risk assessment scores. The first phase of the program is preparatory for treatment, consisting of seven modules. The second phase of the program, referred to as "core treatment", consists of twenty four modules. In the core treatment phase, sex offenders designated as "high risk" based on their risk assessment scores are required to attend groups twice weekly and once a month individually. "Low risk" offenders participate in groups once weekly and individual sessions once a month. The third phase of the program is "maintenance", consisting of twelve modules. In the maintenance phase, participants have group meetings no less frequently than every other week, and individual sessions no less than quarterly. Completion of all twelve modules is required to complete the maintenance phase, and group sessions are the primary method that the program uses to assess completion of the modules. Upon completion of maintenance, the fourth phase of the program is "aftercare". In aftercare, participants have no group sessions, individual meetings only as needed at the discretion of their clinicians, and twice yearly polygraph examinations. Dr. Loree characterized participation in "aftercare" as voluntary for those no longer on parole, but mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment. Dr. Loree testified that she believes a continuous connection to treatment is required for all sex offender parolees based on Penal Code § 3008's provision that the duration of a sex offender management program can be up to the entire term of parole.

When HOPE became the sex offender management provider for Petitioner's region, they devised the following general process for participants who were in the maintenance phase of the Shaping Success program. The participants were required to complete the seven module treatment preparation phase, submit a non-deceptive polygraph examination, and undergo a

risk assessment. Upon completion of those three requirements, participants were then moved into the maintenance phase of the HOPE program. Dr. Loree was unable to describe exactly when Petitioner went through that screening process and was moved to maintenance. Petitioner testified that when he first began with HOPE he was required to attend groups twice weekly in addition to individual sessions for the first three months of his participation in the program. After that, Petitioner testified that he was moved to the maintenance phase of the HOPE program – he currently attends groups once every two weeks and individual sessions quarterly. Dr. Loree confirmed that this is the lowest level of treatment available in HOPE's maintenance phase. Dr. Loree testified that Petitioner has completed four of the twelve maintenance phase modules. His attendance has been "near perfect". His STATIC-99R score is 4, which is categorized as high risk. The STATIC-99R measures risk factors that generally do not change over time with the exception of age at last release from prison. HOPE has administered two dynamic risk assessments to Petitioner – the Stable-2007 and the LS/CMI. His most recent Stable-2007 score is 2, and his most recent LS/CMI score is 6. Both are categorized as low risk. (Exhibit 7). Dr. Loree testified that Petitioner's overall risk assessment, taking both the STATIC-99R score and the dynamic risk assessment scores into account, is average risk – classified as an 8% likelihood of sexual recidivism within 5 years as compared to the overall population of individuals convicted of sexually motivated offenses.

Petitioner is married, has stable housing, and is presently employed. He is the sole wage earner in his household. He has reached journeyman level in his carpenter's union. He is enrolled in community college courses in pursuit of his Associate of Arts degree, with the goal of becoming a construction superintendent. Since the 2019 parole violation, his parole performance has been positive. (Exhibit 5H). He asserts that the increased frequency of group meetings since his transition from the Shaping Success program to the HOPE program is interfering with his ability to meet his employment obligations.

II. Legal Discussion

A. Failure to Exhaust Remedies

The Attorney General argues that this Court should deny the writ because Petitioner has failed to exhaust his administrative remedies before seeking writ relief, citing In re Muszalski (1975) 52 Cal.App.3d 500, 508. While it is true that exhaustion is typically required before a writ of habeas corpus may be granted, there is an exception to the requirement of exhaustion where an aggrieved party "can positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Petitioner is not "required to pursue a futile remedy." In re Thompson, *supra*, at 263.

In the instant petition, Petitioner filed a grievance on June 11, 2021 prior to filing the instant writ petition. The grievance and response were admitted as Exhibits 7H and 8H. Petitioner's grievance sought to be "placed back on maintenance with the same frequency of contact that I had with Shaping Success provider." (Exhibit 7H.) On July 28, 2021, Petitioner's grievance was denied on the grounds that Penal Code § 3008(d)(2) and Petitioner's special condition of parole required him to participate in sex offender treatment "while under parole supervision", and that HOPE's program staff had stated that Petitioner would be moved to HOPE's maintenance phase with once per week group sessions and monthly individual sessions. (Exhibit 8H.) At the hearing, the Court heard the testimony of Gilberto Haro, presently responsible for overseeing the operations of five parole units within the East Bay where Petitioner is supervised. Mr. Haro participated in the review and denial of Petitioner's grievance. He supervises Petitioner's assigned parole agent. Mr. Haro testified unamibiguously that the treatment provider determined Petitioner's appropriate level of treatment and parole denied Petitioner's grievance in deference to that decision. Mr. Haro further testified that he understands Penal Code § 3008(d)(2) to require a sex offender parolee to participate in a sex offender management program for the entire term of parole.

The Attorney General further presented the testimony of Daniel Stout, who previously supervised the East Bay parole region and is currently assigned to the sex offender unit of parole headquarters. Mr. Stout participates in the drafting and editing process for contracts between CASOMB certified sex offender management program providers and the Division of Adult Parole Operations. He testified that it is the policy of the California Department of

Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge from parole. This was consistent with Dr. Loree's testimony of her understanding that Penal Code § 3008(d)(2) requires sex offender parolees to maintain "some connection to treatment" for the entire period of parole until discharge. Dr. Loree testified that Petitioner would be required to complete all twelve modules of maintenance with the HOPE program before moving to aftercare.

Petitioner's grievance sought admission to "maintenance" with the same level of program contact that had been required at Shaping Success – monthly individual check-ins and no group treatment. The testimony at the evidentiary hearing established that the minimum level of supervision required for "maintenance" at HOPE is participation in group meetings every other week and quarterly individual sessions. The testimony of the parole witnesses established that any appeal of Petitioner's grievance denial would be a futile act – the Division of Adult Parole Operations defers to the treatment provider's determination of the frequency of treatment, and HOPE's minimum maintenance treatment requirement exceeds the amount of programming required by the former provider. In this case, Petitioner can positively state what the administrative agency's decision in his particular case would be. The Court finds that he is not required to exhaust remedies under these circumstances.

B. Mootness/Unripe for Review

The Attorney General further contends that the petition is moot or unripe for review because Petitioner has already "received the relief he requested." Respondent's Return to the Order to Show Cause; Supporting Memorandum of Points and Authorities, p. 13, L. 23. It is apparent from the face of both the grievance and the petition for habeas corpus that Petitioner has not received the relief that he requested. Petitioner requested to be "placed back on maintenance *with the same frequency of contact that I had with Shaping Success provider*". (emphasis added by the Court). The evidence at the hearing amply demonstrated that not only has Petitioner **not** been placed in treatment at the same frequency of contact as previously required, but that the structure of the HOPE program makes it impossible for him to be placed

on the same level of contact. He will either be included in the maintenance phase, which requires group meetings every other week that Shaping Success did not require; or he will eventually transition to aftercare, which includes individual check-ins "as directed" rather than monthly.

Further, Petitioner's writ relief request seeks relief beyond that described in his parole grievance. He seeks a declaration by the Court that he has successfully completed the required sex offender management program defined in Penal Code § 3008, and that the Court order the Department of Corrections and Rehabilitation to cease requiring Petitioner's participation in an "additional" sex offender management program. As discussed above in relation to exhaustion, it is apparent from the testimony offered at the hearing that the Division of Adult Parole Operations takes the position that a "sex offender management program" cannot be completed prior to discharge from parole, and that Petitioner's completion of the treatment phase of the Shaping Success program does not satisfy the obligation for completion of a "sex offender management program". The Attorney General's contention that the petition is moot or unripe lacks merit.

C. Length of Participation in Sex Offender Treatment/Management

1. Habeas Corpus Relief

The fundamental goals of parole are to "'help individuals reintegrate into society as constructive individuals'", "'to end criminal careers through the rehabilitation of those convicted of crime'", and to [help them] become self-supporting." In re Hudson (2006) 14 Cal.App.4th 1, at p. 9, citing In re Stevens (2004) 119 Cal.App.4th 1228 at 1233. A condition of parole will not be held invalid unless it 1) has no relationship to the crime of which the offender was convicted, 2) relates to conduct which is not in itself criminal, and 3) requires or forbids conduct which is not reasonably related to future criminality. Conversely, a condition of parole which requires or forbids conduct which is not itself criminal is valid if that conduct is reasonably related to the crime of which the defendant was convicted or to future criminality. People v. Lent (1975) 15 Cal.3d 481 at 486.

Penal Code § 3008(a) requires the Department of Corrections and Rehabilitation to "ensure that all parolees under active supervision who are deemed to pose a high risk to the public of committing sex crimes, as determined by the State-Authorized Risk Assessment Tool for Sex Offender (SARATSO), … are placed on intensive and specialized parole supervision." Penal Code § 3008(c) further requires the Department to "develop control and containment programming for sex offenders who have been deemed to pose a high risk to the public of committing a sex crime, as determined by the SARATSO, and **shall** require participation in appropriate programming as a condition of parole." (emphasis added by the Court). Penal Code § 3008(d)(2) provides that:

> Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crimes were committed.

Petitioner was convicted of sodomy by force, with the resulting requirement that he register as a sex offender pursuant to Penal Code § 290. The Static-99R is the SARATSO used by the Department to determine risk level, and the hearing evidence establishes that Petitioner's SARATSO score places him in the "high-risk" category. The challenged special condition of parole requiring him to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program" is statutorily required. Applying the Lent test, Petitioner's habeas corpus claim fails. On its face, the challenged special condition of parole is reasonably related both to the crime of which Petitioner was convicted and to his future criminality.

Petitioner's argument that his completion of the "treatment" phase of Shaping Success qualifies as completion of the single sex offender management program required by Penal Code § 3008 is without merit. Petitioner's completion of group counseling with Shaping Success did not result in the termination of his further participation in the program. He was still required to report monthly for individual check-ins and to complete periodic polygraph

testing. His certificate of treatment completion expressly stated that it was not certification that had completed the sex offender management program and that further requirements applied. Petitioner never "completed" a sex offender management program, and the current requirement for participation in the HOPE program is a continuation of the original program with a different provider – not a second program. Petitioner's habeas corpus claim is denied.

2. Court Approval of Length of Participation in Sex Offender Management Program per Penal Code § 3008(d)(2)

Petitioner further asks the Court to exercise the statutory discretion conferred by Penal Code § 3008(d)(2) to set the length of the required sex offender management program in his case as something less than the entire period of parole. The Court grants that request for the following reasons. Penal Code § 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. The HOPE program's determined level of necessary treatment for parolees who had completed Shaping Success's treatment phase was not dependent on individualized criteria. All parolees moving into the HOPE program were required to complete at least two new sets of group counseling – the "pre-treatment" seven module phase, and the "maintenance" twelve module phase – without regard to their individual risk assessments[1], likelihood of re-offense, or history on parole supervision. Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion

[1] While Dr. Loree's testimony established that HOPE conducted both static and dynamic risk assessments on intake, the testimony also established that all offenders had to complete the seven module "pre-treatment" phase, and all were placed into the twelve module maintenance phase regardless of score. There was apparently no evaluation as to whether maintenance or aftercare placement was appropriate, and no explanation of how the Shaping Success treatment "curriculum" differed from HOPE's such that HOPE's programming was non-duplicative of that already completed by Shaping Success parolees in the "maintenance" phase.

conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

The Court, in other cases, has certainly encountered parolees for whom public safety demands participation in a sex offender management program for the entire term of parole. Such a requirement may be justified by a parolee's resistance to supervision, refusal to genuinely engage in treatment, refusal to accept responsibility for the commitment offense, and other similar factors. None of those considerations are present in Petitioner's case. The Legislature's guidance on the purpose of parole is as follows:

> [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(1).

In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. His prior CASOMB-certified provider certified to parole that he had "demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan" so as to no longer require group counseling. (Exhibit 9H). He has stable housing and employment. He has progressed in his trade and has enrolled in community college to advance his career prospects. He has a stable family. His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. Petitioner's other special conditions of parole require in relevant part:

continuous GPS monitoring, parole approval of employment, parole approval of residence with accompanying curfew hours, restrictions on travel, substantial restrictions on use of any computer with accompanying search conditions, and participation in both substance abuse and mental health treatment as directed by parole. Petitioner's other parole conditions are sufficient to meet the public safety requirement for effective supervision and surveillance. His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge. The Court exercises the authority conferred by Penal Code § 3008(d)(2) to disapprove any further participation in a sex offender management program as a condition of Petitioner's parole, and fixes the length of the required sex offender management program as terminating on March 20, 2023.

DISPOSITION

For the foregoing reasons, the Petition for Writ of Habeas Corpus is HEREBY DENIED. Pursuant to the authority granted by Penal Code § 3008(d)(2), the Court disapproves any further participation in a sex offender management program as a condition of parole, and fixes the length of the sex offender management treatment program required by his sentence as terminating on March 20, 2023.

DATED: _____

ELECTRONICALLY SIGNED

Judge Elizabeth M. Hill
Electronically signed.
Redwood City, CA
2023.03.20
12:24:08-07'00'

Elizabeth M. Hill
Judge of the Superior Court of California
San Mateo County

EXHIBIT B

DEPARTMENT 86 LAW AND MOTION RULINGS

Case Number: 23STCP02378 **Hearing Date:** December 13, 2023 **Dept:** 86

ALLIANCE FOR CONSTITUTIONAL SEX OFFENSE LAWS, INC. v. MACOMBER

Case Number: 23STCP02378

Hearing Date: December 13, 2023

[Tentative] ORDER OVERRULING DEMURRER

Respondent, Jeff Macomber, Secretary of the California Department of Corrections and Rehabilitation (CDCR), demurs to the petition for writ of mandate filed by Petitioners, Alliance for Constitutional Sex Offense Laws, Inc., Christopher Sandahl, Joshua Morales, Alexander Flores, John Doe # 1, and John Doe # 2 (collectively, Petitioners).

Petitioners' unopposed Request for Judicial Notice (RJN) of Exhibits A and B is granted.

SUMMARY OF PETITION ALLEGATIONS

The five individual Petitioners are parolees subject to the jurisdiction of the CDCR. Petitioner, Alliance for Constitutional Sex Offense Laws, Inc., is a non-profit organization. (Pet. ¶¶ 9-17.)

Petitioners contend "CDCR's regulations, policies, and practices are inconsistent with and in conflict with the statutory requirements of the 'Containment Model' of parole supervision codified in Penal Code section 3008, subds. (d)(1)-(d)(4), and related statutes." (Pet. ¶ 1.)

The petition alleges Penal Code section 3008, subdivision (d) and related statutes codify the Containment Model. (Pet. ¶¶ 20-24.) The petition explains Penal Code "Section 3008(d) requires each Registrant on parole to 'successfully complete **a** sex offender management program . . . as a condition of parole.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.)" (Pet. ¶ 2.) "[T]he Legislature declared that 'the length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) In other words, Section 3008(d) requires CDCR to provide Registrants the opportunity to 'complete,' and thereby terminate their participation in, the management program as early as one year after placement on parole." (Pet. ¶ 3.)[1]

As relevant to this demurer, the petition alleges, in conflict with Penal Code section 3008, subdivision (d), CDCR regulations, policy, and practice do not allow registrants to complete and discontinue the management program prior to discharge from parole. (Pet. ¶¶ 31-55, 57-60.) Among others, relevant allegations in support of this claim include the following:

> The only CDCR regulation that expressly implements Section 3008 and the management program it requires as a condition of parole is Title 15, Section 3573, of the Code of Regulations. . . . Notably, no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates. (Pet. ¶ 32.)
>
> Notably, the Operations Manual for CDCR's Division of Adult Parole Operations confirms that Registrants are retained in the management program for the duration of their parole term, regardless of whether continued participation is necessary. . . . (Pet. ¶ 33.)
>
> [U]pon information and belief, as a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)
>
> CDCR recently confirmed its policy in the habeas corpus proceeding captioned *In re Frederick Dwyer* (See Exh. A, Order dated March 20, 2023 in San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). (Pet. ¶ 35 and Exh. A.)
>
> The Registrant challenged the requirement to repeat the treatment curriculum in a petition for writ of habeas corpus, invoking the Court's discretionary authority to terminate a sex offender management program after one year pursuant to Section 3008. The Court held an evidentiary hearing at which it found that the sole basis for retaining the Registrant in the management program was CDCR's policy of requiring all Registrants to participate in the program for the duration of parole, regardless of their individual treatment needs. (Exh. A, at p. 10.) CDCR agents including the Registrant's individual parole agent, as well the parole administrator for the East Bay District (Alameda and Contra Costa County), confirmed that policy in response to the Court's inquiry:
>
> [THE COURT:] Have you ever during the time that you have been in the positions that you have described were responsible to 290 registrants seen a participant in a sex offender management program complete such a program prior to[] termination or discharge from parole?
>
> THE [CDCR] WITNESS: No.
>
> THE COURT: Is it essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program . . . ?
>
> THE [CDCR] WITNESS: Yes.

(Transcript of Hearing on February 9, 2023 in *In re Dwyer*, (San Mateo Co. Super. Ct. Case No. SC080355A, HC-3020). See also Order, Exh. A, at pp. 6-7 ["[A former East Bay region supervisor from CDCR] testified that it is the policy of the California Department of Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge 3 from parole."].) (Pet. ¶ 39.)

Based on these and other allegations, Petitioners seek a writ of mandate directing Respondent "to amend and revise its regulations implementing Penal Code section 3008(d), including its Regulations at Code of Regulations, Title 15, section 3573, to permit Penal Code section 290 Registrants supervised by CDCR on parole to complete and be terminated from the sex offender management program required by Penal Code section 3008(d) after one year in the program, and prior to discharge from parole." (Pet. ¶¶ 56-61 and Prayer ¶ A.)

In the second cause of action for declaratory relief, Petitioners pray for "a judgment declaring that Penal Code section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants in a sex offender management program for the entire term of parole." (Pet. ¶¶ 63-68 and Prayer ¶ B.)

LEGAL STANDARD FOR DEMURRER

A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civil Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The allegations in the petition must be liberally construed in favor of a petitioner on demurrer. (See *Mobil Oil Corp. v Exxon Corp.* (1986) 177 Cal.App.3d 942, 947.) "A demurrer must dispose of an entire cause of action to be sustained." (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

ANALYSIS

First Cause of Action – Writ of Mandate

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The first cause of action is for ordinary mandate pursuant to Code of Civil Procedure section 1085. There are two essential requirements to the issuance of an ordinary writ of mandate:

(1) a clear, present, and ministerial duty on the part of the respondent, and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (*California Ass'n for Health Services at Home v. Department of Health Services* (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where . . . the claim is that an agency has failed to act as required by law." (*Id*. at 705.)

"Generally, mandamus is available to compel a public agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) "A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists." (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.)

" 'While, of course, it is the general rule that mandamus will not lie to control the discretion of a court or officer, meaning by that that it will not lie to force the exercise of discretion in a particular manner . . . [it] will lie to correct abuses of discretion, and will lie to force a particular action by the inferior tribunal or officer, when the law clearly establishes the petitioner's right to such action.' " (*Flores v. Dept. of Corrections & Rehabilitation* (2014) 224 Cal.App.4th 199, 208.)

Respondent argue Petitioners have not stated a cause of action for mandate because:

(1) Petitioners failed to exhaust their administrative remedies in CDCR's "robust administrative grievance and appeal process (Memo 11:6-7); (2) the petition provides "no factual support" (Memo 12:18); (3) Petitioners "fail to establish a ministerial duty or valid rule making challenge" related to CDCR's regulations (Memo 16:12); and (4) Petitioners have an adequate legal remedy in a petition for writ of habeas corpus. (Memo 16:16.)

Petitioners assert the demurrer misapprehends the nature of the petition and fails to address all pertinent allegations. The court agrees. Respondent's demurrer does not persuasively address Petitioner's specific legal claim or all pertinent allegations, including those based on evidence from *In re Frederick Dwyer*. For that reason, and the additional reasons outlined below, the demurrer is overruled.[2]

Exhaustion of Administrative Remedies

Exhaustion of administrative remedies is "a jurisdictional prerequisite to judicial review." (*California Water Impact Network v. Newhall County Water Dist.* (2008) 161 Cal.App.4th 1464, 1489.)
"The exhaustion requirement applies whether relief is sought by traditional (Code Civ. Proc., § 1085) or administrative (Code Civ. Proc., § 1094.5) mandamus." (*Eight Unnamed Physicians v. Medical Executive Com.* (2007) 150 Cal.App.4th 503, 511.)

"Before seeking judicial review a party must show that he has made a full presentation to the administrative agency upon all issues of the case and at all prescribed stages of the administrative proceedings." (*Edgren v. Regents of University of California* (1984) 158 Cal.App.3d 515, 520.) There are exceptions to the exhaustion requirement, including "when the subject of the controversy lies outside the administrative agency's jurisdiction, when pursuit of an administrative remedy would result in irreparable harm, when the administrative agency cannot grant an adequate remedy, and when the aggrieved party can positively state

what the administrative agency's decision in his particular case would be." (*Edgren v. Regents of University of California, supra,* 158 Cal.App.3d at 520.)

Respondent contends CDCR's governing regulations establish a "robust administrative grievance and appeal process for inmates and parolees . . . to challenge imposed parole conditions or seek modifications of the conditions imposed before seeking judicial relief." (Memo 11:6-10 [citing Cal. Code Regs., tit. 15, § 3481, subd. (a).)[3] CDCR's exhaustion argument might be persuasive if Petitioners were seeking writs to terminate their own participation in a treatment program or other relief specific to their individual parole conditions. However, Petitioners do not seek such relief. Instead, Petitioners challenge the legality of CDCR's regulatory implementation of Penal Code section 3008 and the sex offender management and treatment program (SOMP) across the state. Petitioners "seek a writ of mandate directing CDCR to amend its regulations to authorize completion of and termination from the sex offender management program prior to discharge from parole." (See Pet. ¶ 6; see also ¶¶ 34-41, 56-61, and Prayer.)

The petition asserts certain CDCR promulgated regulations, in addition to its policies and practices for implementing such regulations, conflict with a controlling statute. Parties are "not required to exhaust administrative remedies" when they "attempt to enforce [an agency's] compliance with . . . controlling statutes," or when the challenged agency action "is based upon a regulation it promulgated." (*United Teachers-L.A. v. Los Angeles Unified School Dist.* (1994) 24 Cal. App. 4th 1510, 1519 n.4; *Sabatasso v. Superior Court* (2008) 167 Cal. App. 4th 791, 795.) While the regulation (Cal. Code Regs., tit. 15, § 3481, subd. (a)) does authorize the claimant to submit a grievance disputing a "policy" of CDCR, Respondent fails to develop an argument the regulation provides an administrative remedy for a challenge to CDCR's promulgated regulations and state-wide implementation of such regulations. Nor does Respondent cite any statutory authority or case law supporting its position.

Petitioners have sufficiently pleaded an excuse from the exhaustion requirement, including lack of adequate administrative remedy.

Petitioners Have Alleged Sufficient Facts to State a Cause of Action for Ordinary Mandate, including a Ministerial Duty

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Respondent contends "[t]here is no factual support for the petitioners' claim that all sex offenders must participate in all aspects of the SOMP [supervision, treatment, and polygraph] for the duration of their statutory parole term." (Memo 12:18-20.) Citing allegations pertaining to the individual Petitioners, Respondent contends "the petitioners' cherry-picked facts do not support their claim that sex offenders are always held to their statutory maximum parole period and required to participate in SOMP for that duration . . . ." (Memo 13:12-14.)

To be sure, Petitioners are not required to provide "factual support" at the pleading stage. "A pleading 'is sufficient if it alleges ultimate rather than evidentiary facts.' " (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1027.)

Petitioners have alleged the following ultimate facts, among others, in support of their traditional writ cause of action:

> [A]s a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)

Although not required at the pleading stage, Petitioners have also pleaded certain evidentiary facts. For example, Petitioners allege in the *In re Frederick Dwyer Dwyer* habeas corpus proceeding, the trial court heard testimony from a CDCR regional supervisor reporting it is "essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program." (Pet. ¶ 39.)[4] The petition also provides information about how all five individual Petitioners have been "retained in the management program indefinitely rather than evaluated for termination from the program, as Section 3008(d) contemplates." (Pet. ¶¶ 43-55.) These ultimate facts and factual allegations are sufficient to state a claim.

Relatedly, Respondent contends Petitioners have not alleged a ministerial duty owed by Respondent and enforceable by mandate. (Memo 14:8-16:12.) Although the argument is not well developed and is unclear, Respondent appears to contend section 3573 of title 15 of the California Code of Regulations (Section 3573) "does not amend, impair, or limit the scope of section 3008(d)(2) as nothing in Penal Code section 3008(d)(2) prohibits nor mandates that the Secretary exercise his discretion in any particular manner." (Memo 15:26-28.) Respondent notes the "regulation does not exempt *any* sex offender parolees from requesting or being granted early discharge from their statutory parole period." (Memo 15:28-16:2.) That a sex offender parolee may request early discharge does not appear to inform on the validity of the regulation.

The petition is partly based on an alleged conflict between Section 3573 and Penal Code section 3008, subdivision (d) (see Pet. ¶ 32), but the petition also alleges "CDCR, ***as a matter of policy***, retain[s] all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense." (Pet. ¶ 34 [emphasis added].) Further, as to Section 3573, the petition alleges "no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates." (Pet.

¶ 32.)

Respondent does not demonstrate Petitioner's allegations concerning Section 3573 are incorrect. Even if Section 3573 does not expressly prevent parolees from "requesting or being granted early discharge from their statutory parole period," as argued by Respondent, the petition sufficiently alleges the regulation is interpreted and implemented by CDCR in a manner that conflicts with Penal Code section 3008, subdivision (d).

"[M]andamus may issue to compel an official both to exercise his or her discretion (if he or she is required by law to do so) and to exercise it under a proper interpretation of the applicable law." (*California Assn. for Health Servs. at Home v. State Dept. of Health Care Servs*. (2012) 204 Cal.App.4th 676, 683; see also Gov. Code, § 11342.2. ["Whenever by the express or implied terms of any statute a state agency has authority to adopt regulations to implement, interpret, make specific or otherwise carry out the provisions of the statute, no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute."])

Because Petitioners have alleged CDCR's regulations, policies, and practices conflict with the controlling statutes, including Penal Code section 3008, subdivision (d), Petitioners have alleged a cause of action for traditional mandate.

- Petitioners Sufficiently Allege They Lack a Plain, Speedy, and Adequate Remedy in the Ordinary Course of Law

Respondent contends Petitioners have an adequate legal remedy through a petition for writ of habeas corpus "to challenge their parole condition that requires them to participate in the SOMP." (Memo 17:6-7.)

The argument is unpersuasive for at least three reasons. First, it misapprehends the nature of Petitioners' writ claim as a challenge to individual parole conditions, rather than a challenge to Respondent's state-wide regulations, policies, and practices. Second, it ignores applicable case law, which held, in similar circumstances, that "[a] writ of habeas corpus . . . is not available 'in the ordinary course of law'" because it is "an extraordinary remedy." (*Villery v. Department of Corrections & Rehabilitation* (2016) 246 Cal. App. 4th 407, 415-16.) Finally, Respondent does not demonstrate, for purposes of a demurrer, that numerous habeas corpus petitions challenging CDCR's regulations, policies, and practice would be more "speedy" or "adequate" than a single writ petition raising the same claim.

Respondent does not addressed *Villery v. Department of Corrections & Rehabilitation* or Petitioners' other contentions regarding the inadequacy of habeas corpus petitions for the claim made in the petition. (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc., supra,* 111 Cal.App.4th at 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

Petitioners have sufficiently alleged they lack a plain, speedy, and adequate remedy in the ordinary course of law.

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- Demurrer for Uncertainty

Respondent contends "use of the fictitious names John Doe # 1 and John Doe # 2 render the petition uncertain and ambiguous providing additional grounds for the Court to sustain the demurrer." (Memo 13:16-17.)

Demurrers for uncertainty are strictly construed. Discovery can be used for clarification. A demurrer for uncertainty is appropriate only where a defendant cannot reasonably determine what issues or claims are stated. (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) "[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.)

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Here, even with the use of fictitious names for Petitioner Does 1 and 2, Respondent can reasonably determine the nature of Petitioners' claims. Notably, Petitioners' claims are also based on allegations concerning the *In re Frederick Dwyer* litigation and the other, named individual Petitioners. Further, as discussed earlier, the petition does not seek writ relief as to any individual's parole conditions. Instead, Petitioners challenge Respondent's statewide regulations, policies, and practices. In these circumstances, the use of fictitious names for two of the Petitioners does not render the pleading uncertain as asserted by Respondent.

Respondent has not demonstrated his demurrer for uncertainty should be sustained.

New Reply Arguments

In reply, Respondent admittedly challenges the petition based on entirely new arguments not discussed in his demurrer. Specifically, Respondent contends: (1) Petitioners have not alleged sufficient facts to support a facial challenge to Section 3573 (Reply 3:5-6); (2) the petition allegations are insufficient because they are made on "information and belief" and "Petitioners do not rely on their own circumstances or experience in relation to th[e] alleged [unlawful] policy and practice" (Reply 6:9-11); (3) testimony from the *In re Frederick Dwyer* litigation is insufficient to state a cause of action for mandate (Reply 7:12-14); and (4) Petitioners have not alleged standing to make "as applied" challenges to CDCR's regulations, policies, and practices based on a "hypothetically similar petitioner." (Reply 7:14, fn. 3.)

"The salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before." (*Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010; see also *Regency Outdoor Advertising v. Carolina Lances, Inc.* (1995) 31 Cal.App.4th 1323, 1333.)

Respondent does not show good cause to raise new arguments in reply. The reply arguments are legal in nature and could have been raised in the demurrer. Respondent's counsel's meet and confer declaration states that on August 11, 2023 counsel for Respondent and Petitioner discussed "the Secretary's position that claims raised in the petition failed as a matter of law." (Heinisch Decl. ¶ 4.) Nonetheless, there is no explanation for failing to raise the Respondent's reply arguments in the demurrer. Petitioners have not had a full and fair opportunity to respond in writing to the arguments initially raised in Respondent's reply. Under the circumstances, the court declines to consider the new reply arguments summarized above.[5]

Second Cause of Action – Declaratory Relief

Respondent argues "Petitioners' claim for declaratory relief is wholly and entirely dependent on their claim for mandamus relief" and should be sustained. (Memo 17:10-11.) However, as argued by Petitioners, the second cause of action is based on Government Code section 11350, subdivision (a), in the Administrative Procedures Act and, therefore, is not derivative of the writ cause of action.[6] Respondent does not address the argument in reply and thereby concedes it for purposes of this demurrer. (*Sehulster Tunnels/Pre-Con, supra,* 111 Cal.App.4th at 1345, fn. 16.)

CONCLUSION

The demurrer is overruled.

IT IS SO ORDERED.

December 13, 2023

Hon. Mitchell Beckloff

Judge of the Superior Court

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[1] Specifically, Penal Code section 3008, subdivision (d)(2) provides: "(d) On or after July 1, 2012, the parole conditions of a person released on parole for an offense that requires registration pursuant to Sections 290 to 290.023, inclusive, shall include all of the following: . . . (2) Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed."

[2] In reply, Respondent does not specifically defend the arguments he made in his demurrer. Instead, Respondent makes entirely new arguments which is procedurally improper. In a footnote, Respondent states he "does not abandon any arguments raised in the demurrer. Respondent relies on the arguments as presented in the demurrer in addition to those presented in this reply." (Reply 3, fn. 1.) While Respondent may not have "abandoned" any legal arguments for purposes of this proceeding, he has not responded to many, if not all, of Petitioners' opposition arguments concerning the sufficiency of the pleading. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

[3] The regulation states in part: "A claimant has the ability to submit a written grievance to the department containing one or more claims, subject to the requirements in section 3482, to dispute a policy, decision, action, condition, or omission by the department or departmental staff. . . ." (Cal. Code Regs., tit. 15, § 3482, subd. (a).)

[4] Respondent wholly ignores the *In re Frederick Dwyer* allegations in the demurrer. In reply, Respondent argues the *In re Frederick Dwyer* allegations could only be relevant to a claim of collateral estoppel. (Reply 6:27-7:3.) The court disagrees. Whether the *In re Frederick Dwyer* decision has any collateral estoppel effect, testimony from that action may constitute judicial admissions or otherwise lead to evidence in support of Petitioner's claim. As a result, the ultimate ruling of the San Mateo County Superior Court in *In re Frederick Dwyer* is not determinative here. (See Reply 7:4-14.)

[5] Alternatively, even if the court considers the new reply arguments, the court reaches the same result and overrules the demurrer for the reasons discussed above and in Petitioners' opposition. Given the liberal pleading standard and the allegations that Respondent's regulations, policies, and practices are unlawful, including based on testimony from a CDCR regional supervisor in the *In re Frederick Dwyer* litigation, the reply arguments do not persuade the court that the demurrer should be sustained. Of course, Respondent is not precluded from further developing its arguments for the trial on the writ petition.

[6] Government Code section 11350, subdivision (a) states in pertinent part: "Any interested person may obtain a judicial declaration as to the validity of any regulation or order of repeal by bringing an action for declaratory relief in the superior court in accordance with the Code of Civil Procedure. . . . The regulation or order of repeal may be declared to be invalid for a substantial failure to comply with this chapter. . . ."

EXHIBIT C

State of California
Office of Administrative Law

In re:
Department of Corrections and Rehabilitation

Regulatory Action:

Title 15, California Code of Regulations

Adopt sections: 3574
Amend sections:
Repeal sections:

***AMENDED* NOTICE OF APPROVAL OF CERTIFICATE OF COMPLIANCE**

Government Code Sections 11349.1 and 11349.6(d)

OAL Matter Number: 2025-0321-01

OAL Matter Type: Certificate of Compliance (C)

Through this Certificate of Compliance action, the Department of Corrections and Rehabilitation makes permanent the emergency regulatory changes adopted in OAL File No. 2024-0924-02EON and readopted in OAL 2025-0311-01EON. Specifically, the adoption of Section 3574 into California Code of Regulations, Title 15 (CCR 3574) regarding the sex offender treatment program for sex offender supervised persons.

OAL approves this regulatory action pursuant to section 11349.6(d) of the Government Code.

Date: April 28, 2025

Allegra Volonte Anvari
Attorney

For: Kenneth J. Pogue
Director

Original: Jeffrey Macomber, Secretary
Copy: Dmitriy Kostyuk

TEXT OF ADOPTED REGULATIONS

In the following, underline indicates new text.

California Code of Regulations

Title 15. Crime Prevention and Corrections

Division 3. Adult Institutions, Programs and Parole

Chapter 1. Rules and Regulations of Adult Operations and Programs

Subchapter 6. Adult Parole

Article 5. Sex Offenders

3574. Sex Offender Treatment

(a) The requirement for a supervised person to attend sex offender treatment is established pursuant to Penal Code (PC) section 3008(d), persons released to parole and required to register pursuant to PC sections 290 to 290.023 shall participate in a sex offender management program. The sex offender management program is comprised of three treatment phases (Curriculum Phase, Maintenance Phase, Aftercare Phase), Containment Team Meetings (CTM~~s~~), and polygraph examinations. Sex offender treatment providers (who~~m~~ are trained and certified pursuant to PC 290.09) shall be subject to the terms of the California Sex Offender Management Board.

(1) Curriculum Phase, also known as the active phase, is when the supervised person attends individual and group therapy sessions, at the prescribed hours per week, as determined by the sex offender treatment provider. These sessions focus on the goals and objectives of the treatment plan determined by the sex offender treatment provider through the sex offense specific treatment curriculum. It also involves the completion of mandated State Authorized Risk Assessment Tools for Sex Offenders (SARATSO) and the participation in polygraph assessments.

(2) Maintenance Phase is a phase where the supervised person works to maintain the gains made in the curriculum phase. Maintenance phase occurs when a supervised person has addressed the underlying issues related to their offending behavior, developed skills to lead a pro-social life, and mitigated their dynamic risk factors (according to the SARATSO assessment tools), as determined by the sex offender treatment provider, allowing for adjustment of treatment requirements. While in the maintenance phase, the supervised person is expected to continue to work towards their prescribed treatment plan goals, complete SARATSO assessments, participate in polygraph assessments, and attend group sessions as determined by the sex offender treatment provider. The supervised person may be required to attend in person sessions

weekly, monthly, or quarterly, based on their predetermined needs and assessments by the sex offender treatment provider.

(3) Aftercare Phase is a voluntary phase in the format of a support group with the sex offender treatment provider. This phase is for supervised persons who voluntarily continue their participation in the sex offender management program after they have successfully completed the curriculum and maintenance phases or persons who have been discharged from parole supervision.

(A) Persons voluntarily participating in the aftercare phase are responsible for any costs associated with participation.

(4) Containment Team Meeting is a meeting with all involved parties, as referenced in subsection 3574(a)(4)(A), whose purpose is to review the supervised person's treatment progress, dynamic risk factors, polygraph results, community reintegration, response to parole supervision, supervision category, and relevant individual case factors to evaluate the supervised person's readiness for sex offender management program completion.

(A) The Containment Team shall normally be comprised of a parole agent, unit supervisor or assistant unit supervisor, supervised person, contracted clinician (licensed psychiatrist, psychologist, or psychiatric social worker directly treating the supervised person), and victim advocacy representative. In the event all members of the Containment Team are not available to meet, the Containment Team shall minimally consist of a contracted clinician, parole agent, unit supervisor or assistant unit supervisor, and the supervised person. The Containment Team may also include other relevant stakeholders (e.g. Division of Adult Parole Operations and community program managers, polygraph examiner, etc.), family members of the supervised person, or any person in the supervised person's life that wishes to participate and can provide a first-hand account of the positive progress the supervised person is making.

(5) A Polygraph is a machine that measures a person's physiological responses when they respond to questions. Polygraph assessments are completed or contracted by the sex offender treatment provider as required by PC section 3008(d)(3).

(b) Persons placed on parole on or after July 1, 2012, required to register pursuant to PC sections 290 to 290.023, inclusive, shall successfully complete a sex offender management program in accordance with PC section 3008(d). Program participation shall be no less than one year, up to the entire period of parole. Participation in the sex offender management program is required, regardless of when the qualifying offense was committed.

(c) The sex offender treatment provider prescribes the number of treatment hours per week as determined by the supervised person's risks, needs, responsivity, and offense-free time in the community.

(d) Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by the PC section 3008(d).

(e) The Containment Team's review of program completion is solely to determine the length of a supervised person's participation and progress in sex offender treatment. This review is independent of whether the supervised person should be discharged from parole and the electronic monitoring requirements of the supervised person pursuant to PC 3010.10. The CTM schedule shall be as follows:

(1) The ~~first~~ initial CTM shall be between ~~within~~ 90 and 100 calendar days ~~of~~ from release to parole, or ~~within~~ between 90 and 100 calendar days ~~of the supervised person's revocation release date~~ following a release of a supervised person who has spent 90 days or more in custody. The purpose of this CTM is to determine the most appropriate level of parole supervision needed for monitoring the supervised person while in the community, in accordance with Section 3573(c).

(2) The second CTM shall be within nine months following the first CTM (one-year CTM). This is the first review to determine whether the supervised person's sex offender management program requirements have been satisfied, completing their statutory requirement to successfully complete a sex offender management program.

(3) All subsequent CTMs shall be at least annually thereafter in accordance with the supervised person's level of parole supervision.

(f) When the Containment Team makes a determination to retain a participant in a sex offender management program, the determination shall be supported by good cause, as defined in Section 3000. A determination to retain a supervised person in a sex offender management program shall be stated in writing, signed by the sex offender treatment provider and parole agent on the CDCR Form 3043 Containment Team Meeting / Earned Discharge Consideration Committee (Rev.~~7~~11/24), which is incorporated by reference. This completed form shall be delivered to the supervised person within 30 calendar days of the CTM and maintained in the supervised person's file. Reasons to retain a supervised person in a sex offender management program may include, but are not limited to:

(1) Pursuant to Section 3573, a Level of Service or Case Management Inventory (LS/CMI) score of 11 or higher.

(2) Pursuant to Section 3573, a Stable-2007 score of four or higher for males only.

(3) A current polygraph completed with deception found or new disclosure admissions that the supervised person has committed acts that would incur a technical or law violation.

(4) Parole violation(s), relevant to the supervised person's sex offense or adherence to the Conditions and Special Conditions of Parole associated with their sex offense, that occurred within one year of the review.

(g) The parole agent and unit supervisor may re-refer a supervised person to a sex offender management program for evaluation if there is a change in the supervised person's behaviors related to the risk of re-offense to a level likely to lead to a risk to

public safety, using the CDCR 1502 (Rev. 07/24) Activity Report. A re-referral may also be initiated at the request of the supervised person.

(1) Upon re-referral, the sex offender treatment provider shall complete the dynamic risk and violence risk assessments, pursuant to section 3573 and PC sections 290.04 and 290.09, to determine if the risk to re-offend has increased.

(A) If risk to re-offend has increased, the supervised person will be required to attend the sex offender management program, with the prescribed hours of treatment being determined by the sex offender treatment provider, until the increased risk to re-offend has been mitigated. While the supervised person is attending a sex offender management program, CTMs shall be re-established in accordance with Section 3574.

(B) If the sex offender treatment provider determines there is no increased risk in re-offense, the re-referral shall be considered closed, and the sex offender management program requirements remain completed.

Note: Authority cited: Sections 5058 and 5058.3, Penal Code. Reference: Sections 290 through 290.023, 3008, 5054, and 9003, Penal Code.

STATE OF CALIFORNIA

ADOPT

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

CONTAINMENT TEAM MEETING/EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 11/24)

SECTION 1: SUPERVISED PERSON'S INFORMATION (TO BE COMPLETED BY AGENT OF RECORD)

CDCR #	Supervised Person's Name (Last, First, M.I.)	Parole Date	Last Release Date	Supervision Level	Parole Unit

PC 290 Offense: | Commitment Offense (if different): | Participating in SOT: ☐ YES ☐ NO ☐ N/A

Select the form purpose and complete the associated form sections (Check one box)

☐ Initial Containment Team Meeting (CTM) (Sections 1,2 & 4) ☐ CTM & Sex Offender Treatment Review (Sections 1,2,3, 4 & 5 if applicable)
☐ Abbreviated CTM (Sections 1,3, & 4) ☐ Earned Discharge Consideration Committee (complete in PVDTS): PVDTS ID # _____

Was Supervised Person Present? ☐ YES ☐ NO If No, Cite Reason - Check Appropriate Box(es):

☐ Supervised Person Did Not Respond to Request ☐ Supervised Person is Not Required to Attend ☐ Supervised Person Failed to Appear
☐ Supervised Person Declined to Participate ☐ Supervised Person Participated Telephonically

Other Participant's Name: _____ Relation to Supervised Person _____ Comments: _____

SECTION 2: ASSESSMENT SCORES (TO BE COMPLETED BY AGENT OF RECORD)

ASSESSMENT TOOL	SCORE	OBJECTIVE CRITERIA
CSRA		☐ LOW (1) ☐ MODERATE (2) ☐ HIGH (3 TO 5)
STATIC (IF APPLICABLE)		☐ HIGH RISK SEX OFFENDER (HRSO)(4 AND ABOVE) ☐ NON-HRSO (3 AND BELOW)
FEMALE SEX OFFENDER RISK ASSESSMENT (IF APPLICABLE)		☐ HRSO (MODERATE, HIGH) ☐ NON-HRSO (LOW)
LS/CMI _____ Date Administered		☐ VERY LOW (0TO 4) ☐ LOW (5 TO 10) ☐ MODERATE (11 TO 19) ☐ HIGH (20 TO 29) ☐ VERY HIGH (30 AND ABOVE)
Stable 2007 (MALES ONLY) _____ Date Administered		☐ LOW (0 TO 3) ☐ MODERATE (4TO 11) ☐ HIGH (12 AND ABOVE)
POLYGRAPH _____ Date Administered ☐ **INCONCLUSIVE**		**DECEPTION FOUND** ☐ YES ☐ NO ☐ N/A — **DISCLOSURE ADMISSION** ☐ YES ☐ NO

SECTION 3: SUMMARY OF PAROLE ADJUSTMENT (TO BE COMPLETED BY AGENT OF RECORD)

OBJECTIVES	SCORE		OBJECTIVE CRITERIA (Select One Rating Per Objective) ☐ See Discharge Review Dated: _____
OBJECTIVE 1: Supervised person has maintained residence stability in a positive living environment.	☐	1	Has been in the same pro-social living situation for the review period, or most recent move was to improve overall living conditions, and current residence expected to remain stable.
	☐	2	Has been in two or more living situations for the review period with any move not improving the living conditions.
	☐	3	Has demonstrated an unstable living environment, is transient or routinely difficult to see at the residence of record.
OBJECTIVE 2: Supervised person's time has been structured around pro-social activities geared towards self-reliance.	☐	1	Time is highly structured and focused on pro-social activities.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
OBJECTIVE 3: Supervised person has been compliant with all general and special conditions of parole.	☐	1	No violation has been substantiated for the review period.
	☐	2	Has only one technical violation and demonstrated a positive response to the imposed sanction.
	☐	3	The supervised person has not met the rating standard for #1 or #2 below.
OBJECTIVE 4: Supervised person has been referred to and has participated in programming for the top three identified criminogenic needs.	☐	1	Attended, participated, and completed programming.
	☐	2	Attended and partially participated in programming.
	☐	3	Failed to participate or complete programming.
OBJECTIVE 5: Supervised person has been referred to and participated in required sex offender treatment.	☐	1	Attended, participated, and/or completed sex offender treatment.
	☐	2	Attended and partially participated in sex offender treatment.
	☐	3	Failed to participate or complete sex offender treatment.
	☐	4	Demonstrated deception in polygraph.
OBJECTIVE 6: Supervised person has been and is affiliated with other pro-social individuals.	☐	1	Relationships are primarily pro-social and supportive of a crime free lifestyle.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
TOTAL SCORE:			☐ **6 - 7 Reduction May be Warranted** ☐ **8-12 No Change Warranted** ☐ **13-19 Increase May be Warranted**

DISTRIBUTION: Original: Field File **Copies:** Agent of Record (AOR), Supervised Person

CONTAINMENT TEAM MEETING/EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 11/24)

SECTION 4: CATEGORY DETERMINATION AND/OR SOT REVIEW (TO BE COMPLETED BY DAPO AND SEX OFFENDER TREATMENT PROVIDER)

Treatment Provider Name	Treatment Provider Signature	CASOMB Certification Date	Treatment Program Name	Date

Treatment Provider Sex Offender Treatment Recommendation:

☐ Retain ☐ Complete ☐ Comments:

AOR Name	AOR Signature	Badge #	Date

AOR Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete ☐ N/A

AOR Supervision Category Recommendation: ☐ Remain in Current Category ☐ Move to Category: _____

☐ Comments:

Effective Communication/Accommodation Provided: ☐ NO ☐ YES

Unit Supervisor (US) Name	US Signature	Badge #	Date

US Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete ☐ N/A

US Determination: ☐ Remain in Current Category ☐ Move to Category: _____ Effective Date: _____

☐ Comments:

District Administrator (DA) Decision: ☐ Supervised person is currently ST or SA and will be reclassified to SC **(DA Signature Required)**

DA Name **(If applicable)**	DA Signature	Badge #	Date

SECTION 5: SEX OFFENDER UNIT (SOU) DETERMINATION (TO BE COMPLETED BY SOU PAROLE ADMINISTRATOR/ PAROLE AGENT III)

☐ This section shall be completed when the supervising parole unit and the SOT provider have conflicting sex offender treatment recommendations.

SOU Parole Administrator/ Parole Agent III Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete

☐ Comments:

Parole Administrator/ Parole Agent III Name	Parole Administrator/ Parole Agent III Signature	Badge #	Date

STATE OF CALIFORNIA

REPEAL

DIVISION OF ADULT PAROLE OPERATIONS

CONTAINMENT TEAM MEETING/ EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 07/24)

SECTION 1: SUPERVISED PERSON'S INFORMATION

CDCR #	Supervised Person's Name (Last, First, M.I.)	Parole Date	Last Release Date	CDD	Supervision Level	Parole Unit

Commitment Offense(s): | PC 290 Offense:

CSRA SCORE: ☐ **LOW (1)** ☐ **MODERATE (2)** ☐ **HIGH (3 TO 5)** | Participating in SOMP: ☐ YES ☐ NO

(Select the form purpose and complete the associated form sections)

☐ Initial Containment Team Meeting (CTM) (Sections 1,2 & 4) ☐ CTM & Sex Offender Treatment Review (Sections 1,2,3,4 & 5)

☐ Abbreviated CTM (Sections 1,2,3 & 4) ☐ Earned Discharge Consideration Committee (Sections 1 & 6)

Was Supervised Person Present? ☐ YES ☐ NO If No, Cite Reason - Check Appropriate Box(es):

☐ Supervised Person Did Not Respond to Request ☐ Supervised Person is Not Required to Attend ☐ Supervised Person Failed to Appear

☐ Supervised Person Declined to Participate ☐ Supervised Person Participated Telephonically

☐ Effective Communication/Accommodation Provided:

Other Participants

Name:_____ Relation to Supervised Person_____ Comments: _____

SECTION 2: SEX OFFENDER TREATMENT ASSESSMENT SCORES

ASSESSMENT TOOL	SCORE	OBJECTIVE CRITERIA
STATIC SCORE OR FEMALE SEX OFFENDER RISK ASSESSMENT Date Administered: _____		☐ HIGH RISK SEX OFFENDER (HRSO) (MODERATE, HIGH, OR 4 AND ABOVE) ☐ NON- HRSO (LOW OR 3 AND BELOW)
LS/CMI Date Administered: _____		☐ VERY LOW (0 TO 4) ☐ LOW (5 TO 10) ☐ MODERATE (11 TO 19) ☐ HIGH (20 TO 29) ☐ VERY HIGH (30 AND ABOVE)
Stable 2007 (MALES ONLY) Date Administered: _____		☐ LOW (0 TO 3) ☐ MODERATE (4 TO 11) ☐ HIGH (12 AND ABOVE)
POLYGRAPH TYPE: ☐ **MAINTENANCE** ☐ **INSTANT OFFENSE** ☐ **SEXUAL HISTORY** Date Administered:_____ ☐ **INCONCLUSIVE**		**DECEPTION FOUND** ☐ YES ☐ NO ☐ N/A — **DISCLOSURE ADMISSION** ☐ YES ☐ NO ☐ N/A

SECTION 3: SUMMARY OF PAROLE ADJUSTMENT

OBJECTIVES	SCORE		OBJECTIVE CRITERIA (Select One Rating Per Objective) ☐ See Discharge Review Dated: _____
OBJECTIVE 1: Supervised person has maintained residence stability in a positive living environment.	☐	1	Has been in the same pro-social living situation for the review period, or most recent move was to improve overall living conditions, and current residence expected to remain stable.
	☐	2	Has been in two or more living situations for the review period with any move not improving the living conditions.
	☐	3	Has demonstrated an unstable living environment, is transient or routinely difficult to see at the residence of record.
OBJECTIVE 2: Supervised person's time has been structured around pro-social activities geared towards self-reliance.	☐	1	Time is highly structured and focused on pro-social activities.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
OBJECTIVE 3: Supervised person has been compliant with all general and special conditions of parole.	☐	1	No violation has been substantiated for the review period.
	☐	2	Has only one technical violation and demonstrated a positive response to the imposed sanction.
	☐	3	The supervised person has not met the rating standard for #1 or #2 below.
OBJECTIVE 4: Supervised person has been referred to and has participated in programming for the top three identified criminogenic needs.	☐	1	Attended, participated, and completed programming.
	☐	2	Attended and partially participated in programming.
	☐	3	Failed to participate or complete programming.
OBJECTIVE 5: Supervised person has been referred to and participated in required sex offender treatment.	☐	1	Attended, participated, and/or completed sex offender treatment.
	☐	2	Attended and partially participated in sex offender treatment.
	☐	3	Failed to participate or complete sex offender treatment.
	☐	4	Demonstrated deception in polygraph.
OBJECTIVE 6: Supervised person has been and is affiliated with other pro-social individuals.	☐	1	Relationships are primarily pro-social and supportive of a crime free lifestyle.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
TOTAL SCORE:			☐ **6 - 7 Reduction May be Warranted** ☐ **8-12 No Change Warranted** ☐ **13-19 Increase May be Warranted**

DISTRIBUTION: Original: C-File **Copies:** Agent of Record (AOR), Supervised Person

CONTAINMENT TEAM MEETING/ EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 07/24)

SECTION 4: CATEGORY DETERMINATION

AOR Recommendation: ☐ Remain in Current Category ☐ Move to Category: _____

AOR Name	AOR Signature	Badge #	Date

AOR Comments and Instructions:

Unit Supervisor (US) Decision: ☐ Remain in Current Category ☐ Move to Category: _____ ☐ Effective Date: _____

US Name	US Signature	Badge #	Date

US Comments and Instructions:

District Administrator (DA) Decision: ☐ Supervised person is currently ST or SA and will be reclassified to SC **(DA Signature Required)**

DA Name **(If applicable)**	DA Signature	Badge #	Date

SECTION 5: SEX OFFENDER TREATMENT REVIEW

Treatment Provider Name	Treatment Provider Signature	CASOMB Certification Number	Treatment Program Name	Date

Treatment Provider Recommendation:

☐ Retain ☐ Complete ☐ Comments:

AOR Name	AOR Signature	Badge #	Date

AOR Recommendation:

☐ Retain ☐ Complete ☐ Comments:

Unit Supervisor (US) Name	US Signature	Badge #	Date

US Recommendation:

☐ Retain ☐ Complete ☐ Comments:

SECTION 6: EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 1502-DR, Discharge Review Report, Provided to Supervised Person ☐ YES ☐ NO

Completed in Parole Violations Disposition Tracking System (PVDTS) ☐ YES ☐ NO

If YES, PVDTS ID Number: _____ ***Note: If YES, attach the PVDTS report in lieu of completing this section***

US Name	US Signature	Badge #	Date

US Recommendation:

☐ Discharge ☐ Retain on Parole ☐ Comments:

DA Name	DA Signature	Badge #	Date

DA Recommendation:

☐ Discharge ☐ Retain on Parole ☐ Comments:

Administrative Review Officer (ARO) Name	ARO Signature	Badge #	Date

ARO Determination:

☐ Discharge ☐ Retain on Parole ☐ Comments:

FINAL STATEMENT OF REASONS

The Initial Statement of Reasons (ISOR) is incorporated by reference.

UPDATES TO THE INITIAL STATEMENT OF REASONS:

On January 3, 2025, the California Department of Corrections and Rehabilitation (CDCR or the department) published the Notice of Change to Regulations for Sex Offender Treatment, which began the public comment period. The department's Notice of Change to Regulations #25-01 was mailed the same day to individuals who had requested to be on the department's mailing list for regulation changes, was posted on the department's website, and copies were posted in CDCR institutions. Five written public comments were received during the public comment period. The comments are summarized and responded to below under the heading *Summaries and Responses to Written Public Comments Received During the Initial Comment Period*. A public hearing was held on February 20, 2025. The department received no comments during the public hearing.

DETERMINATIONS, ASSESSMENTS, MANDATES, AND FISCAL IMPACT:

The department has determined that no alternative considered would be more effective in carrying out the purpose for which this regulation is proposed or would be as effective and less burdensome to affected private persons or would be more cost effective to affected private persons and equally effective in implementing the statutory policy or other provision of law than the action proposed. No such alternatives were proposed or brought to the department's attention during the adoption of this rulemaking action.

The department has made an initial determination that the action will not have a significant adverse economic impact on business. Additionally, there has been no testimony or other evidence provided that would alter the department's initial determination.

The department has determined that this action imposes no mandates on local agencies or school districts, or a mandate which requires reimbursement pursuant to Part 7 (Section 17561) of Division 4 of the Government Code (GC).

The department has determined that no reasonable alternatives to the regulation have been identified or brought to the attention of the department that would lessen any adverse impact on affected private persons or small businesses than the action planned.

The department, in proposing the adoption of these regulations, has not identified nor has it relied upon any technical, theoretical, or empirical study, report, or similar document.

The department has relied upon the results of the Economic Impact Assessment, which can be found in the Notice of Proposed Regulations and is available for review as part of the rulemaking file.

NOTE REGARDING CDCR FORMS INCORPORATED BY REFERENCE (CCR, TITLE 1, SECTION 20):

This note explains the department's justification for incorporating forms by reference. The department uses over 1,500 forms, most of which are regulatory. It would be unduly

cumbersome, expensive and impractical to print all of these forms in the CCR text, therefore the department has always incorporated forms by reference, except in specific circumstances which do not apply in the case of these regulations.

The adopted, amended, and/or repealed forms included in this rulemaking action were made available to the public for review and were included in the notice of rulemaking sent to all parties who have requested notification.

AUTHORITY AND REFERENCES CITATIONS:

Penal Code sections 5058, 5058.3, 290 through 290.023, 3008, 5054, and 9003.

SUMMARIES AND RESPONSES TO WRITTEN PUBLIC COMMENTS RECEIVED DURING THE INITIAL COMMENT PERIOD:

Commenter #1

Comment 1: Pursuant to Section 3573, a Stable-2007 score of "four or higher for males only" shall be, amended to include but not limited to Transgender Men and Transgender Women. In addition, to include any sexual predator who is a biological person whose identity includes not soley Male or Transgender Female, or nonbinary. A stable score shall also be applicable to former biological males that now identify with an identity other than male.

In addition, it is imperative that the Aftercare Phase is a Mandatory Outpatient phase in the format of a support group with the sex offender treatment provider. The phase shall be for supervised persons and shall be mandated for no less than one, continuous year, to continue the sex offender's participation in the sex offender management program after the sex offender has successfully completed the curriculum and maintenance phases, or persons who have been discharged from parole supervision.

Response 1:

California Code of Regulations (CCR), Title 15, Section 3574 Sex Offender Treatment (f) (2) references reasons to retain a supervised person in a sex offender management program. Pursuant to this section, a Stable-2007 score of four or higher for males only is a factor. The California Sex Offender Management Board (CASOMB) has established State Authorized Risk Assessment Tools for Sex Offenders (SARATSO). These assessments are validated, and sex offender management professionals utilize the appropriate coding manual and addendums for determining scoring. The Stable-2007 is for males only and utilizes the appropriate coding. Gender identity is not a factor in the validation or application of the tool.

Regarding part two of the comment, CCR Title 15, Section 3574, Sex Offender Treatment, provides for a comprehensive evaluation of risk and needs for each supervised person. Sex Offender Treatment (SOT) participation is based on risk of re-offense to a level likely to lead to a risk to public safety. When the supervised person has successfully completed the maintenance phase it has been determined that their risk and needs have decreased

sufficiently to complete treatment. Additionally, requiring a person to attend a phase of treatment after it has been determined that they have successfully completed contradicts the purpose of the regulation. Lastly, aftercare phase is also voluntarily, attended by those who have discharged parole. The Division of Adult Parole Operations (DAPO) does not have the authority to require a person attend treatment if that person is no longer under the jurisdiction of DAPO.

Commenter #2

Comment: Commenter is an incarcerated person from High Desert State Prison. Commenter wants to know if there is a part from the proposed regulations for incarcerated persons who plead “no contest.” Commenter states these people were accused of horrible charges and had no choice but to accept deals. Commenter states these groups should be able to live their life without watching their backs. These incarcerated persons should be reviewed on a case-by-case basis, including review of the programs complete while incarcerated, and the evidence for the crime accused of, upon their release.

Response 2:

The requirement for persons placed on parole, that are required to register pursuant to Penal Code (PC) sections 290 to 290.023, inclusive, attend sex offender treatment as required by PC 3008(d). Specifically, PC 3008(d)(2) states, “Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.”

These regulations only establish parameters for the existing PC and are unable to alter the existing requirements set forth by PC.

Commenter #3

Comment 3: Commenter is an incarcerated person who provides some background information to their incarceration and sentencing. Commenter states that there are no rehabilitation efforts for incarcerated persons who are sentences as sex offenders, only punitive efforts. Commenter provides support for the proposed sex offender treatment program, but states that sex offender treatment efforts should be offered before release and completed during incarceration not after release, due to different life circumstances after release.

Response 3:

These regulations only establish parameters for the existing PC and are unable to alter the existing requirements set forth by PC. DAPO must abide by PC 3008(d)(2), which states, “Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.”

Additionally, the proposed regulations are regarding Sex Offender Treatment after the release from incarceration. The proposed regulations do not address institutional sex offender treatment programs or their availability. Therefore, the department cannot speak to or address this subject matter at the moment.

Lastly, your comment identifies concerns for potential costs associated with a supervised person’s request for a voluntary re-referral to SOT. PC 3008(e) states, “Any defendant ordered to be placed in an approved sex offender management treatment program pursuant to subdivision (d) shall be responsible for paying the expense of their participation in the program. The department shall take into consideration the ability of the defendant to pay, and no defendant shall be denied discharge onto parole because of their inability to pay.”

Commenter #4

Comments 4 and 5 are duplicative: Commenter is a sex offender treatment provider and is responding to NCR 25-05 to solicitate their services and be considered as a contractor to provide sex offender treatment services.

Response 4: The comment is either insufficiently related to the specific action or actions proposed, or too generalized or personalized to the extent that no meaningful response can be formulated by the department in refutation of or accommodation to the comment. Therefore, the comment is being dismissed.

Additionally, the department responded to the commenter with resources on how to bid on state contracts.

EXHIBIT D

AGENDA # _____ June 18, 2024

ALAMEDA COUNTY PROBATION DEPARTMENT

MARCUS DAWAL
Chief Probation Officer

P.O. Box 2059
1111 Jackson Street
Oakland, CA 94604-2059

May 28, 2024

Honorable Board of Supervisors
County of Alameda
1221 Oak Street, Suite 536
Oakland, California 94612-4305

SUBJECT: APPROVE SECOND AMENDMENT TO THE STANDARD SERVICES AGREEMENT WITH HOPE PSYCHOTHERAPY, INC. FOR SEX OFFENDER THERAPY SERVICES; PROCUREMENT CONTRACT NO. 26374; AMOUNT: $150,000

Dear Board Members:

RECOMMENDATIONS:

A. Approve the Second Amendment to Standard Services Agreement (Procurement Contract No. 26374) with HOPE Psychotherapy, Inc. (Principal: Shannon Smith; Location: Hayward) to continue providing sex offender therapy services, increasing the contract amount from $100,000 to $150,000 ($50,000 increase), with no change to the term of 7/1/2023 - 6/30/2025; and

B. Adopt a Resolution waiving the County's competitive procurement process for sex offender therapy services due to the nature of the unique expertise held by HOPE Psychotherapy, Inc. in delivering the services.

DISCUSSION/SUMMARY:

On January 9, 2024, your Board approved (File No. 31177, Item No. 54) a two-year contract with HOPE Psychotherapy, Inc. (HOPE) to provide sex offender therapy services.

The Alameda County Probation Department (ACPD) contracts with HOPE for sex offender treatment for young adults 18 to 21 years old. HOPE works with young adult clients in individual and group settings. The program specializes in forensic and cognitive behavioral therapy, as well as general psychotherapy for individuals, couples, and families coping with emotional, behavioral, and psychological challenges. In the past year, the program has seen an increase in court orders for youth to receive sex offender treatment services.

The treatment plan for program participants lasts at least one year. This amendment will ensure continuity of services and allow General Services Agency (GSA)–Procurement to complete a new competitive procurement process.

SELECTION CRITERIA/PROCESS:

ACPD has determined that the County does not currently have the resources to provide sex offender therapy services.

ACPD issued an Informal Request for Quotation (IRFQ) in March 2022. Two responses to the IRFQ were received and evaluated. HOPE, a local vendor submitted the lowest bid and met all the requirements of the IRFQ. ACPD is satisfied with the services provided by HOPE.

Due to the nature of this unique service, subcontracting opportunities are not available. As a result, the SLEB requirements have been waived by The Office of Acquisition Policy (SLEB Waiver No. 9498, expires 6/30/2025).

FINANCING:

This contract amendment is funded by the ACPD Positive Youth Development and is included in Fiscal Year 2024-25 proposed budget. No additional funding is required and there will be no increase in net County cost.

VISION 2026 GOAL:

The sex offender therapy services meet the 10X goal pathway of a **Crime Free County** in support of our shared vision of a **Safe & Livable Communities.**

Respectfully submitted,

DocuSigned by:
Brian Ford
709DC87DE7E64D1...

Brian K. Ford
Acting Chief Probation Officer

BF:ns:yw

SECOND AMENDMENT TO STANDARD SERVICES AGREEMENT

This Second Amendment to Agreement ("Second Amendment") is made by the County of Alameda ("County") and Hope Program, A Licensed Clinical Social Worker Professional Corporation dba Hope Psychotherapy, Inc., ("Contractor") with respect to that certain agreement, Purchase Order PROBT-0000008547, entered by them on July 1, 2023 and that certain First (January 17, 2024) Amendment to Agreement, (collectively referred to herein as the "Agreement") pursuant to which Contractor provides Sex Offender Therapy services to County.

County and Contractor, for valuable consideration, the receipt and sufficiency of which are hereby acknowledged, agree as follows:

1. Except as otherwise stated in this Second Amendment, the terms and provisions of this Amendment will be effective as of the date this Second Amendment is executed by the County.

2. In consideration for Contractor's additional services, the County shall pay Contractor in an additional amount not to exceed Fifty Thousand dollars ($50,000). As a result of these additional services the not to exceed amount has increased from One Hundred Thousand dollars ($100,000) to One Hundred Fifty Thousand dollars ($150,000) over the term of the Agreement and any amendments.

3. Paragraph 20 of the Standard Services Agreement has been amended by changing the shall not exceed amount in the last sentence from $100,000 to $150,000.

4. Paragraph 21 of the Standard Services Agreement has been amended and replaced:

   SMALL LOCAL AND EMERGING BUSINESS PARTICIPATION: Contractor is approved by County to participate in contract without SLEB participation. As a result, there is no requirement to be certified or subcontract with another business in order to satisfy the County's Small and Emerging Locally owned Business provision. The approval is based on: SLEB Waiver No. 9498, which expires on 6/30/2025.

   However, if circumstances or the terms of the contract should change, Contractor may be required to immediately comply with the County's Small and Emerging Local Business provisions, including but not limited to:

   a. Contractor must be a certified small or emerging local business(es) or subcontract a

minimum 20% with a certified small or emerging local business(es).

b. SLEB subcontractor(s) is independently owned and operated (i.e., is not owned or operated in any way by Prime), nor do any employees of either entity work for the other.

c. Small and/or Emerging Local Business participation and current SLEB certification status must be maintained for the term of the contract. Contractor shall ensure that their own certification status and/or that of participating subcontractors (as is applicable) are maintained in compliance with the SLEB Program.

d. Contractor shall not substitute or add any small and/or emerging local business(s) listed in this agreement without prior written approval from the County. Said requests to substitute or add a small and/or emerging local business shall be submitted in writing to the County department contract representative identified under Item #13 above. Contractor will not be able to substitute the subcontractor without prior written approval from the Alameda County Auditor Controller Agency, Office of Contract Compliance & Reporting (OCCR).

e. All SLEB participation, except for SLEB prime contractor, must be tracked and monitored utilizing the Elation web-based compliance system.

County will be under no obligation to pay contractor for the percent committed to a SLEB (whether SLEB is a prime or subcontractor) if the work is not performed by the listed small and/or emerging local business.

For further information regarding the Small Local Emerging Business participation requirements and utilization of the Alameda County Contract Compliance System contact OCCR via e-mail at ACSLEBcompliance@acgov.org.

5. Item 4 of Exhibit B is deleted and replaced with the following:

Total payment under the terms of this Agreement will not exceed the total amount of $150,000. This cost includes all taxes and all other charges.

6. Attached hereto is Exhibit D-2, *a current* Debarment and Suspension Certificate executed by Contractor.

7. Except as expressly modified by this Second Amendment, all of the terms and conditions of the Agreement are and remain in full force and effect.

IN WITNESS WHEREOF, the parties hereto have executed this Second Amendment.

COUNTY OF ALAMEDA

By: _____
Signature

Name: Nate Miley
(Printed)

Title: President of the Board of Supervisors

Date: 6/26/2024

HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION dba HOPE PSYCHOTHERAPY, INC.

By: DocuSigned by: Shannon Smith
3850FE9A4520418...
Signature

Name: Shannon Smith
(Printed)

Title: CEO

Date: 5/23/2024

Approved as to Form:
Donna R. Ziegler, County Counsel

By: DocuSigned by: K. Joon Oh 5/22/2024
EPDCE3E0601694A0...
K. Joon Oh, Deputy County Counsel

By signing above, signatory warrants and represents that he/she executed this Second Amendment in his/her authorized capacity and that by his/her signature on this Second Amendment, he/she or the entity upon behalf of which he/she acted, executed this Second Amendment.

EXHIBIT D-2

COUNTY OF ALAMEDA
DEBARMENT AND SUSPENSION CERTIFICATION

(Applicable to all agreements funded in part or whole with federal funds and contracts over $25,000).

The Contractor, under penalty of perjury, certifies that, except as noted below, contractor, its principals, and any named or unnamed subcontractor:

- Is not currently under suspension, debarment, voluntary exclusion, or determination of ineligibility by any federal agency;
- Has not been suspended, debarred, voluntarily excluded or determined ineligible by any federal agency within the past three years;
- Does not have a proposed debarment pending; and
- Has not been indicted, convicted, or had a civil judgment rendered against it by a court of competent jurisdiction in any matter involving fraud or official misconduct within the past three years.

If there are any exceptions to this certification, insert the exceptions in the following space. For any exception noted above, indicate below to whom it applies, initiating agency, and dates of action.

☐ Check if continued on the attached page.

Notes: Providing false information may result in criminal prosecution or administrative sanctions. The above certification is part of the Amendment to the Standard Services Agreement. Signing the Amendment to Standard Services Agreement on the signature portion thereof shall also constitute the signature of this Certification.

CONTRACTOR (COMPANY): HOPE Psychotherapy, Inc.

NAME/TITLE OF AUTHORIZED SIGNER: Shannon Smith / CEO

SIGNATURE: DocuSigned by: Shannon Smith 385UFE5A45204I5... **DATE:** 5/23/2024

A RESOLUTION AUTHORIZING THE WAIVER OF THE COUNTY'S PURCHASING PROCEDURES FOR SEX OFFENDER THERAPY SERVICES FOR THE ALAMEDA COUNTY PROBATION DEPARTMENT

RESOLUTION NUMBER R-2024-284

WHEREAS, the County of Alameda ("County") issued a $25,000 Purchase Order to Hope Program, A Licensed Clinical Social Worker Professional Corporation dba Hope Psychotherapy, Inc. to provide sex offender therapy services for the Alameda County Probation Department ("ACPD") for a term of July 1, 2023 through June 30, 2024; and

WHEREAS, the Board of Supervisors ("Board") previously approved a contract with HOPE Psychotherapy, Inc. on January 9, 2024 (Item No. 54) to continue providing sex offender therapy services; and

WHEREAS, the aforementioned contract with HOPE Psychotherapy, Inc. is currently scheduled to expire on June 30, 2025 for an amount not to exceed $100,000; and

WHEREAS, ACPD is seeking your Board's approval to amend the contract and increase the contract amount by an additional $50,000 to an overall amount of $150,000, with no change to the contract term of July 1, 2023 to June 30, 2025; and

WHEREAS, to the requested contract amendment would ensure continuity of services while General Services Agency (GSA)–Procurement completes a new competitive process; and

WHEREAS, Alameda County Administrative Code Sections 4.12.010, 4.12.020, and 4.12.070 require the solicitation of bids except in unusual cases where the Board of Supervisors ("Board") has, by resolution, found and determined that the public interest would not be served by complying with the bid solicitation process; and

WHEREAS, the Board has determined that HOPE Psychotherapy, Inc. has the required expertise and necessary professional qualifications and has demonstrated competence in providing sex offender therapy services to ACPD youths.

NOW, THEREFORE, BE IT RESOLVED as follows:

1. The findings stated in the recitals to this Resolution are restated in full and adopted by reference.

2. The requirements in Administrative Code Sections 4.12.010 to .020 for the solicitation of bids hereby waived for the selection Hope Program, A Licensed Clinical Social Worker Professional Corporation for sex offender therapy services.

Adopted by the Board of Supervisors of the County of Alameda, State of California, on June 18, 2024 by the following called vote:

AYES: Supervisors Carson, Haubert, Marquez, Tam & President Miley - 5

NOES: None

EXCUSED: None

President of the Board of Supervisors
County of Alameda, State of California

ATTEST:
Clerk of the Board of Supervisors,
County of Alameda, State of California

By: RBailey, Deputy

APPROVED AS TO FORM:
Donna Ziegler,
County Counsel

DocuSigned by:
By: K. Joon Oh 5/22/2024
EFDCE3E8B1694A0...
K. Joon Oh,
Deputy County Counsel

OFFICE OF AQUISITION POLICY (OAP)

25534

REQUEST FOR AUTHORIZATION TO WAIVE SLEB PROGRAM REQUIREMENTS

For Federal grant funds:

Procurements using Federal grant funds which prohibit geographical preferences require the Federal Grant Funds SLEB Waiver Request form to be completed and submitted for approval to the Auditor-Controller Office of Contract Compliance & Reporting (OCCR) prior to soliciting bids/proposals and awarding contracts. For further information contact OCCR at ACSLEBcompliance@acgov.org.

For ALL Requests over $3,000 and for Non-Federal SLEB waivers:

Requests must be completed and submitted online. The automated SLEB waiver requests can be found under the "For Work" section.
See "Online SLEB Waiver Request". Complete #1-#9 below, complete #10 if over $100,000 (First Source applies).
Attach supporting documentation including 2 quotes or approved Sole Source/Piggybacks (must have both the Questionnaire and Finding Memo).

For questions, or if you are unable to access/log in to the automated system, you can contact OAP at gsa-oapslebwaivers@acgov.org.

SLEB Waivers:

Procurement Policy and Procedures Overview (https://alcoweb.acgov.org/gsaapps/slebwaiver/ppp.htm)

PO Checklist (https://alcoweb.acgov.org/gsaapps/slebwaiver/po.htm)

SLEB Waiver Numbers will be issued as required to enter a Procurement Contract in ALCOLINK. Processed SLEB waivers will receive an automated email from OAP.

NOTE: All questions require a complete response. Enter "N/A" or "None", etc., as applicable. Do not leave blank lines.

1. Please check appropriate box and complete department/contact information below.

[X] Requesting Department [ ] GSA Procurement managing the competitive process

Department	Probation	Primary	Yanli Wei	Email	ywei@acgov.org	Telephone	(510)268-2660
(Optional		Secondary		Email		Telephone	
GSA Procurement/Auditor:		Contact Name:	GSA-Buyer	Email	GSA-Buyer@acgov.org	Telephone	(510)208-9600

2. Recommended Vendor Hope Psychotherapy, Inc. PO#: 8547 **REQ#:** N/A

Country United States

Street 1245 B St., **City** Hayward **State:** CA **Zip:** 94541

3. Procurement Type (check all appropriate boxes below):

[ ] New Contract [ ] Renewal [ ] Contract Amendment-Term [X] Contract Amendment- [ ] Othe

4 Total PO/Contract Value (including increase, $150,000.00 **; Increase Value (if** $50,000.00

Contract Term Start 05/15/2024 **End Date** 06/30/2025 **OR One-Time Purchase** [ ]

5. Goods/Services Procurement Description:

Sex offender therapy for youth in custody.

6. Brief explanation of why goods/services are

These services are pursuant to orders of the court, and/or mandated by law under Ca. Penal Code Section 1203.067.

7. Date Goods/Services Needed: 05/15/2024

a. What are the consequences if the date goods/services needed is

The consequences that would occur if the above date is not met would include a gap in services, inability to abide by the orders of the court or mandates by CA law, and lack of services to support the growth and development for juveniles in-custody.

8. Explanation of why the non-SLEB contractor/subcontractor (in #2 above) is being recommended and, if procurement over $25,000, why they are unable to subcontract with a SLEB(s) for a minimum of 20%:

This vendor is being recommended due to the need for continuity and availability of services while we work with GSA to complete a formal bid. In addition, because treatment services are specific to providing sex offender management treatment, there were no subcontracting opportunities. In particular, vendors have to be certified by the CA Sex Offender Management Board.

9. IF APPLICABLE: **New Sole Source submitted to Procurement** ☐ **OR Existing Approved Exception on** ☐ **OR Not** ☒

10. Explain what attempts were made to locate a SLEB prime or, if procurement over $25,000, SLEB subcontractor(s),

☒ Copies of bids received and/or detailed statement of efforts made to contact and negotiate with certified businesses, including list of SLEBs contacted, names of individuals, addresses, phone numbers, dates contacted and bid prices attached. In the section

a. See the BL draft attached.

b. N/A

c. N/A

Supporting Documents:

HopePsychotherapyInc BL Draft 2nd Amendment.docx

SLEB Waiver# 24798.pdf

11 If the contract is over $100,000, is the recommended vendor able to comply with the First Source

Yes: ☒ No: ☐ If No,

Expedite ☐ ***(Check this box to expedite processing)***

12. Department Certification: I certify to the accuracy of the preceding statements,

NASAEPHA	Nai Saephanh	05/15/2024
Signature of Agency/Department Head or Designee or GSA Procurement Manager (if GSA Procurement managed the	**Print Name**	**Date**

OAP to complete below:

A. Request Approved: [X] **Waiver Valid Through:** 06/30/2025 **SLEB Waiver Number:** 9498

Reason:

B. Request Denied:

Reason:

C. Disregard:

Reason:

D. Other:

Reason:

JACKERMAN	05/15/2024
Signed by GSA-Office of Acquisition Policy (Required)	**Date**

*Primary Requestor - Main Contact **Secondary Requestor - Backup Contact

EXHIBIT E

Treatment Completion Guidelines

April 2018

California Sex Offender Management Board
Phone: 916.323.2660 | www.casomb.org
Email: dapocasomb@cdcr.ca.gov

Treatment Completion Guidelines

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1. Introduction

The need for California-specific criteria to determine when sexual offense specific treatment has been "completed" for Penal Code 290 Registrants led the California Coalition On Sexual Offending (CCOSO) to create a Treatment Completion Criteria Work Group.

The CCOSO has generously made its Treatment Completion Guidelines available to CASOMB. The members of the CCOSO Treatment Completion Criteria Workgroup are, deservedly, acknowledged here:

Wesley B. Maram, Ph.D. (Chair)
Christina Bennett, LMFT
Elizabeth Cordes, Ph.D., J.D.
Charles A. Flinton, Ph.D.
Garry Raley, LMFT
Adam F. Yerke, Psy.D.
Danielle Burchett, Ph.D.
Rachyll Dempsey, Psy.D.
Caprice Haverty, Ph.D., LMFT
Rick Oliver, Ph.D.
Mark Wolkenhauer, Psy.D.
Lea Chankin, Psy.D.
Deirdre D'Orazio, Ph.D.
Efrat Mazin, Psy.D.
Tom Tobin, Ph.D.

The CCOSO Work Group considered numerous treatment completion criteria and checklists utilized throughout the nation. There is no well-established model that meets California's needs, but there is considerable consistency in the treatment completion materials reviewed.

The CCOSO Work Group's goal in creating Treatment Completion Guidelines is to help sex-offender-specific treatment providers evaluate a client's progress and success in meeting the goals and objectives of his or her treatment plan - a treatment plan which is designed to identify and reduce risk factors for re-offense, increase lifestyle stability, and foster prosocial behaviors. This intention is identical to that of the Adult Practice Guidelines by the Association for the Treatment of Sexual Abusers (ATSA, 2014).

The result of these guidelines is a useful tool that will help treatment providers and others involved in sex offender management make good case management decisions that acknowledge the importance and benefit of successful treatment completion.

This tool will help California's systems of sex offender management achieve their ultimate goal: reduce sexual recidivism so that children, women and men do not become future victims of sexual abuse.

2. Application to California Statutes

California has implemented structures and requirements to reduce the re-offense risk of registered sex offenders. State law establishes that all registrants on state parole or county probation be managed within the "Containment Model" and required to enter and successfully complete a sex offender treatment program certified by CASOMB.

Much of this change was the result of Assembly Bill 1844, more commonly known as "Chelsea's Law." Enacted in 2010, created language in the California Penal Code which underscores the importance of determining whether an individual has successfully "completed treatment", *bold underline emphasis added*.

SELECTED PORTIONS OF THE CALIFORNIA PENAL CODE

1203.067. (b) (2) Persons placed on formal probation on or after July 1, 2012, **shall successfully complete** a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of release from probation. The length of the period in the program shall be not less than one year, up to the entire period of probation, as determined by the certified sex offender management professional in consultation with the probation officer and as approved by the court.

3008. (d) (2) Persons placed on parole on or after July 1, 2012, **shall successfully complete** a sex offender management program*, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.

9003. (b) On or before July 1, 2011, the board [*CASOMB*] shall develop and update standards for certification of sex offender management programs, which shall include treatment, as specified, and dynamic and future violence risk assessments pursuant to Section 290.09. The standards shall be published on the board's Internet Web site.

("management program" in the above Penal Code sections is understood to mean the "treatment program.")

For purposes of the CASOMB Sex Offender Treatment Program Requirements the term "successful treatment completion" is defined as having "demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan" at the time of release from treatment. When the client has successfully completed treatment he or she shall receive a statement of successful treatment completion. Provider agencies will submit a copy of the statement to CASOMB and to the supervising agency, if any.

Treatment completion does not mean that the client has successfully completed the sex offender management program. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e. CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

3. Guiding Principles

The following basic principles frame the assessment of successful treatment completion.

1. Appropriately-designed and well-delivered specialized sex offender treatment is widely accepted as an effective, evidence-based method for reducing the risk of future sexual offending of those who have committed a sexual offense.

2. Treatment is viewed as a set of structures, tools, and procedures to support, motivate, and guide each offender's self-change process so that the risks of reoffending are reduced. Thus, a determination that someone has "completed" treatment is not a guarantee that that person will never reoffend, has no risk of reoffending, or will not have an increase in such risk in the future.

3. Research clarifies that simply attending a treatment program does not elicit the beneficial outcome. Program participants who are successful in meeting treatment objectives (those who "got it") reoffend less frequently and less severely than those who are not successful in meeting objectives (those who "didn't get it"). This highlights the importance of treatment engagement [Marques, J. K., Wiederanders, M., Day, D. M., Nelson, C., & van Ommeren, A. Effects of a Relapse Prevention Program on Sexual Recidivism: Final Results from California's Sex Offender Treatment and Evaluation Project (SOTEP). *Sexual Abuse: A Journal of Research and Treatment*, Jan. 2005, V. 17, 1, 79–107].

4. Collaboration, consistent terminology, and understanding the larger framework within which treatment completion is considered are essential to effectively intervene in the problem of sexual offending. Treatment is one component of the Containment Model. Readers are referred to Requirement 10 in the CASOMB Sex Offender Treatment Provider Agency Requirements.

5. "Successfully completing treatment" means the client has sufficiently attained the identified skills and lifestyle changes necessary to adequately manage his or her risk factors and foster resiliencies and additional protective factors that lower the risk of recidivism. The larger body of general offender outcome research, summarized as the Risk-Needs-Responsivity principles, indicates that treatment length and intensity should take into account the individual offender's degree of risk, unique "criminogenic needs" (risk factors), and learning style. Therefore, for high-risk offenders and those with high levels of criminogenic needs, treatment will be more intense and of longer duration than that delivered to low-risk offenders, with low levels of criminogenic needs.

6. Validated, evidence-based, applicable instruments or scales for determining treatment completion are not currently available within the field of sexual offender treatment.

7. In the absence of a sufficiently validated empirically based instrument, research suggests it is better to rely upon a framework for "structured clinical judgment" using agreed-upon criteria to guide decision making rather than relying on unstructured clinical judgment.

8. Treatment completion is most appropriately viewed as lying along a continuum rather than existing as a dichotomous variable. Yet, the determination by the treatment provider must be either yes or no. The challenges posed by this expectation are managed by use of a clear set of structured clinical judgment criteria.

9. The 2014 Adult Practice Guidelines developed by the Association for Treatment of Sexual Abusers (ATSA) represent general consensus among experts in the field of sexual offender treatment and are a useful guide in developing treatment completion guidelines.

10. California Treatment Completion criteria must take into account parameters and requirements imposed by California state law.

11. Using a widely-accepted method incorporating industry standards and guidelines assures providers they are adhering to best practice standards.

12. The items to be reviewed when determining whether treatment has been completed are an organized list of profession and research-supported factors that can guide structured clinical judgment. What is offered here is not a scorable instrument, scale or tool. No suggestions are made regarding exactly how the listed considerations are to be rated, scored, or weighted by the treatment provider.

13. Future research may identify new factors and provide evidence that some of the items listed are not as important as thought to be at the time of this paper. The provider is responsible for incorporating contemporary research in determining treatment completion, without changing the items on the worksheet (Appendix A).

14. Completion criteria should take into account the expectations imposed by California's *State Authorized Risk Assessment Tools for Sex Offenders* (SARATSO) Committee which specifies that certain dynamic risk assessment instruments be used to assess each individual directed to treatment. SARATSO has selected dynamic risk assessment tools specific to assessing risk of sexual recidivism and for future violence risk assessment. Consequently, treatment completion criteria would be expected to take into consideration these instruments.

15. Discharge planning starts at intake. The final determination regarding whether an individual has "completed" treatment should never come as a surprise to the client. Regular reviews of progress in which the treatment provider and client collaborate about the nature, goals, and objectives of treatment along with the criteria for assessing progress and completion are necessary.

16. Treatment "completion" is conceptualized as a "protective factor". Protective factors are associated with reduced risk. In the real world, many obstacles emerge which can make it difficult for an individual to successfully acquire the protective factor "successful treatment completion". These obstacles include, but are not limited to, circumstances such as ill health, infirmity, financial issues, impediments to travelling to the treatment setting, cognitive disabilities, mental illness, physical disabilities, and periods of incarceration or other interruptions in treatment participation. In many cases, these circumstances are not caused by or under the control of the individual whose treatment engagement is impacted by them. In some circumstances obstacles make it impossible for the impacted individual to successfully complete treatment, and may require on-going maintenance treatment.

17. It is important to routinely incorporate measures of criminogenic needs, variably referred to as stable risk factors, psychological risk factors and long term vulnerabilities, using research-supported tools and inventories, specialized behavioral and psychophysiological tools, objective records, and information obtained from the Containment Team, collateral contacts, and the client's self-report.

18. When assessing for treatment completion, do not rely solely on one assessment instrument. Refer to Appendix B for common tools assessing known criminogenic needs.

19. Criteria strive to simultaneously take into account two important dimensions: adequacy and improvement in a particular area. Progress and change are necessary, but reduction in an acceptable risk level is the ultimate goal. Some individuals with high levels of risk may cease treatment without having "successfully completed". For example because their supervision period has ended or because they cannot afford the cost of treatment they might discontinue treatment prior to "successful completion".

20. Although provider agencies are free to add any components or documentation requirements they wish in the manner they choose, the determination of treatment completion is not the same as a "Discharge Summary." The goal is to provide a tool to structure and guide a clinician's thinking in order to arrive at a YES-or-NO conclusion about whether treatment has been completed. The intent is not to impose additional service requirements, program components, or excessive documentation burdens on programs and providers.

21. CASOMB has the authority to conduct audits of certified provider agencies. One focus of such audits will be the provider agency's decision process for determining treatment completion and the provider agency's outcomes using that process.

5. Structured Clinical Approach

The Treatment Completion Guidelines list the components of a system for applying a "structured clinical judgment" approach to determine whether treatment has been "completed."

Structuring clinical judgment according to professional guidelines is a more reliable method of making clinical determinations than unstructured clinical judgment. "Structured" in this case means determining the global final judgment about treatment completion by considering a number of previously determined components (referred to as Factors or Dimensions).

Note that the approach suggested here does not provide, offer, or indicate the use of any numerical, "scoring," or weighting system of factors listed.

Provided is a list of areas and factors that shall be considered when determining successful treatment completion. Clinician's rate the factor as not met, partially met, or met. This information structures the clinician's professional judgment, leaving it to the clinician to determine how these multiple considerations are best combined into a specific final decision about whether the individual being evaluated has "completed" treatment. For example, one factor might not be met, but it is not relevant to the client at hand, whereas another factor might be met that is more salient than other factors met. In short, there are no rules to rating, weighting, or combining factors.

At the end of this document, in Appendix A, is the Treatment Completion Worksheet form to help organize the clinician's professional determination of successful treatment completion. The clinician can include "NOTES" to help track the determinations for each of the factors. The notes can also be helpful should the determination be questioned at a later time.

Section One: Cooperation with Treatment

1. Attendance and External Compliance with Treatment Expectations *
2. Duration of Treatment
3. Effort and Active Participation in Treatment **
4. Ownership of Actions
5. Attainment of Treatment Goals

Section Two: Criminogenic Needs

6. Self-Management Domain
7. Social Involvement Domain
8. Sexuality Domain
9. Attitudes, Schemas and Beliefs Domain
10. General Criminality Domain

Section Three: Additional Considerations

11. Risk Level
12. Individual Factor(s)
13. Predicted Trajectory
14. Containment Team Judgment

6. Treatment Completion Guidelines

Item	Description [Only brief statements are provided. It is assumed that treatment providers and programs will be sufficiently familiar with the following domains and dimensions and their discussion in the literature to be able to apply them to the case being evaluated.]
Section One: **Cooperation with Treatment**	These factors focus on the individual's basic stance toward and performance in the treatment program. Unless there is good evidence that these basic elements are solidly in place, it would be difficult to determine that treatment has been "completed."
1. Attendance and External Compliance with Treatment Expectations *	After a period of settling into treatment, has the individual been regular in attendance, generally punctual, and responsible in handling acceptable absences with advance notification? After a period of settling into treatment, have there been few or no instances of needing parole or probation supervisor support in enforcing attendance? After a period of settling into treatment, has the individual demonstrated sufficient acceptance of the framework and rules around treatment and satisfactorily followed program rules?
2. Duration of Treatment	Has the individual completed a treatment program of not less than one year, or up to the entire period of supervision? (PC 1203.067 and 3008. (d) (2))
3. Effort and Active Participation in Treatment *	Does the individual take an active role in his or her own treatment? Examples: speaks up in sessions without prompting; offers statements of self-disclosure; focuses on relevant issues; completes homework without special prompting; offers useful feedback to others in a group setting. Does the individual consistently demonstrate sufficient effort, meaningful treatment engagement, directed toward meeting treatment goals and changing problematic patterns of thought and behavior?
4. Ownership of Actions	Does the individual clearly and consistently demonstrate a sense of "agency," and responsibility for his or her own personal decisions and behaviors in the treatment setting and in his or her current life? In most cases this would include taking responsibility for offending behavior. Does the individual accept having a set of problems, issues, and criminogenic treatment "needs?" Is he or she generally able to identify and take ownership of corresponding treatment goals? (Such an "ownership" or "agency" stance is in contrast with client statements such as "it just happened" or "circumstances or the actions of others are what really led to my problems.") However, criminogenic factors can be addressed in treatment without an individual acknowledging the full extent of which the person was accused.
5. Attainment of Treatment	Has the individual made sufficient progress with the goals on his or her treatment plan?

SECTION TWO: **Criminogenic Needs** *[A condensed list of the research-supported factors which should be considered when evaluating progress and current status in each of the five Domains can be found in Appendix B.]*	In accord with the "Need Principle," the focus of specialized sex offender treatment is to address the changeable aspects of the participant's life that have predisposed him/her to sexual offending. These are summarized in the research literature by accepted dynamic risk assessment instruments. A large number of different criminogenic needs have been identified, that can be classified within four overarching "Domains."** These are: • The Self-Management or Self-Regulation Domain • The Social Involvement Domain • The Sexuality Domain • The Attitudes or Belief System Domain In addition, because there is an expectation that specialized sex offender treatment will also address and reduce general criminal recidivism, a fifth domain is included: • General Criminality Domain **Within Each Domain, Evidence For Success And Progress Should Be Evaluated Along Four Dimensions. ***** 1. Understanding dimension – understands the key concepts related to this domain. 2. Acceptance dimension – accepts the values and desired core attitudes related to this domain. 3. Behaviorally-evidenced in sessions dimension – actions in group and individual sessions show that efforts to change behaviors in this domain are succeeding. 4. Behaviorally-evidenced in daily life dimension – disclosures in group and individual sessions along with information from outside sources show that efforts to change behaviors in this domain are succeeding.
Criminogenic Needs 6. Self-Management Domain	General self-regulation problems; Lifestyle Impulsiveness; Impulsivity; Recklessness; Dysfunctional Coping; Sexualized Coping; Poor Problem Solving Skills; Emotional Control; Emotion Management; Negative Emotionality; Dysfunctional Self-Evaluation; Substance Abuse; Insight; Sexual Risk Management.
Criminogenic Needs 7. Social Involvement Domain	Social Involvement; Social Influences; Community Support; Relationships with Adults; General Social Rejection; Negative Social Influences; Lack of Emotionally Intimate Relationships with Adults; Intimacy Deficits; Capacity for Relationship Stability; Conflicts in intimate Relationships; Emotional Congruence with Children; Employment Instability; Residence; Finances; Mental Health Stability.
Criminogenic Needs 8. Sexuality Domain	Sexual Preoccupation; Sexual Compulsivity; Sex Drive; Sex as Coping; Any Deviant Sexual interest; Multiple Paraphilias; Sexually Deviant lifestyle; Sexual Preference for Children; Sexualized Violence; Persistence and Rapidity of Sexual Offending; Sexual Behavior; Sexual Attitudes; Sexual Offending Cycle.
Criminogenic Needs 9. Attitudes, Schemas and Beliefs Domain	Acceptance of Responsibility; Cognitive Distortions; Offense-supportive Attitudes; Child Abuse Supportive Beliefs; Excessive Sense of Entitlement; Lack of Concern for Others; Callousness; Machiavellianism; Adversarial Sexual Attitudes; Hostility Toward Women; Deceitful Women; Emotional Congruence with Children; Externalizing; Grievance/hostility; Grievance Thinking.

Criminogenic Needs 10. General Criminality Domain	Criminal and Rule-Breaking Attitudes; Criminal and Rule-Breaking Behavior; Criminal Personality; Interpersonal Aggression; Offence Planning; Cooperation with Supervision; Compliance with Community Supervision; Resistance to Rules and Supervision; Cooperation with Treatment; Treatment Compliance; Stage of Change; Admission of Offense Behavior; Substance Abuse; Any other LS/CMI factors.

Section Three: **Additional Considerations**	Other justifiable considerations should be utilized in determining whether treatment has been "completed."
11. Risk Level	What is the level of risk as determined by an administration of the STABLE-2007 (or equivalent instrument) within the last six months (or at least within the last year) and with consideration of his Static-99R risk score? [See Guiding Principle 17 above.]
12. Individual Factor(s)	Examples: Is there a particular risk-related barrier that this individual has addressed and sufficiently overcome? Has there been a new arrest or charge for a sex offense within the last year or has there been a violation of supervision conditions or an incident of other behavior which appears related to or suggests active interest in sexual offending? Is there something about this individual and his or her history in treatment which should be considered as an additional factor? Has the individual's prosocial and compliant behavior been corroborated recently (within the past year) by a passed Polygraph (e.g., Maintenance Test)? There may be reasons why the individual did not take or pass a polygraph examination, that may not be related to risk. Has the individual created a satisfactory Safety Plan? Has the individual identified, accepted, made use of and built upon areas in which he or she demonstrates relevant "Strengths" and/or "Resiliencies"? Does this individual have a realistic plan for "aftercare"?
13. Predicted Trajectory	Is there sufficient evidence to support the belief that this individual will, after treatment ends, continue to make changes in his life in the desired direction? How long has the individual been in the community without reoffense?
14. Containment Team Judgment	Do other members of the Containment Team support the determination that treatment has been successfully completed? Refer to the process described in the CASOMB Provider Agency Requirements on page 24.

** Given the context and nature of sex offender treatment, it is common that a referred individual initially exhibits resistance and non-compliance. Behaviors during that initial period of understanding and accommodating to treatment expectations should not be heavily weighed when making overall ratings*

*** When applying these guidelines to a particular individual, identify and focus on those particular dynamic risk factors within each Domain which are salient for the individual being evaluated. It is to be expected that those factors will have been previously identified in the individual's Treatment Plan.*

**** Derived from McGrath's "Sex Offender Treatment Intervention and Progress Score" (SOTIPS) system.*

Appendix A.

Treatment Completion Worksheet

The following document is the treatment completion worksheet, which has been provided to aid clinicians with the organization of their professional determination of successful treatment completion.

Treatment Completion Worksheet

Client Name:	Client DOB:
Client CII #:	Client SSN:
Clinician Name:	Assessment Date:

AREA FOR CONSIDERATION		NOTES
Section One: Cooperation With Treatment		
1. Attendance & External Compliance with Treatment Expectations	☐Not Met ☐Partially Met ☐Met	
2 . Duration of Treatment	☐Not Met ☐Partially Met ☐Met	
3 . Effort and Active Participation in Treatment	☐Not Met ☐Partially Met ☐Met	
4 . Ownership of Actions	☐Not Met ☐Partially Met ☐Met	
5. Attainment of Agreed-upon Treatment Goals	☐Not Met ☐Partially Met ☐Met	
Section Two: Criminogenic Needs		
6. Self-management Domain	☐Not Met ☐Partially Met ☐Met	
7. Social Involvement Domain	☐Not Met ☐Partially Met ☐Met	
8. Sexuality Domain	☐Not Met ☐Partially Met ☐Met	
9. Attitudes, Schemas and Beliefs Domain	☐Not Met ☐Partially Met ☐Met	
10. General Criminality Domain	☐Not Met ☐Partially Met ☐Met	
Section Three: Additional Considerations		
11. Risk Level Initial Level/Current Level (Static-99R & Stable-2007 Combined)	Initial Risk Level ☐ I – Very Low Risk ☐ II – Below Average Risk ☐ III – Average Risk ☐ IVa – Above Average Risk ☐ IVb – Well Above Average Risk	Current Risk Level ☐ I – Very Low Risk ☐ II – Below Average Risk ☐ III - Average Risk ☐ IVa – Above Average Risk ☐ IVb – Well Above Average Risk
12. Individual Factor(s)		
13. Predicted Trajectory		
14. Containment Team Judgment		

With consideration of the results of this Treatment Completion Worksheet has the person completed treatment? ☐ **Yes, Successful Completion** ☐ **No, Treatment was Not Completed**

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Appendix B.

Research-Supported Criminogenic Needs For Sex Offender

The following table includes items from several common need assessment instruments and also the meta-analysis on need factors categorized by domain. The table will assist users of any of these instruments in identifying which treatment completion domain individual instrument items correspond.

SRA: Structured Risk Assessment-Forensic Version

VRS-SO: Violence Risk Scale Sex Offender Version

SOTIPS: Sex Offender Treatment Intervention and Progress Scale

Stable-2007: Stable, 2007 version

MHT: Mann, Hanson, & Thornton meta-analysis

Research-Supported Criminogenic Needs for Sex Offenders

(Grouped into five major "Domains")

I. Self-Regulation – Self-Management Domain

General self-regulation problems (MHT *)
Lifestyle Impulsiveness (SRA)
D 13 Impulsivity (VRS-SO)
Impulsivity (SOTIPS)
Impulsive (STABLE-2007)
Impulsivity, recklessness (MHT)
(P) Dysfunctional coping (MHT)
Dysfunctional Coping (SRA)
(P) Sexualized coping (MHT)
Poor Problem Solving Skills (STABLE-2007)
Problem Solving (SOTIPS)
Poor cognitive problem solving (MHT)
D7 Emotional control (VRS-SO)
Emotion Management (SOTIPS)
Negative Emotionality (STABLE-2007)
Dysfunctional Self-Evaluation (SRA)
Substance Abuse (SOTIPS)
D9 Substance abuse (VRS-SO)
D8 Insight (VRS-SO)
Sexual Risk Management (SOTIPS)

II. Social Involvement Domain

Social Involvement (SOTIPS)
Social Influences (SOTIPS)
Significant Social Influences (STABLE-2007)
D10 Community support (VRS-SO)
Relationships with Adults (SRA)
General Social Rejection (STABLE-2007)
Negative social influences (MHT)
Adult Love Relationship (SOTIPS)
Lack of Emotionally Intimate (SRA)
Lack emotionally intimate relationships w adults (MHT)
D 17 Intimacy deficits (VRS-SO)
Conflicts in intimate relationships (MHT)
Emotional congruence with children (MHT)
Employment (SOTIPS)
Employment Instability (MHT)
Residence (SOTIPS)
Finances (SOTIPS)
Mental Health Stability (SOTIPS)
Capacity for Relationship Stability (STABLE-2007)

III. Sexuality Domain

Sexual Preoccupation (SRA)
D2 Sexual compulsivity (VRS-SO)
Sexual preoccupation (MHT)
Sex Drive - Sex Preoccupation (STABLE-2007)
Sex as Coping (STABLE-2007)
Any deviant sexual interest (MHT)
Multiple paraphilias (MHT)
D 16 Deviant sexual preference (VRS-SO)
Deviant Sexual Preference (STABLE-2007)
D I Sexually deviant lifestyle (VRS-SO)
Child Preference (SRA)
Sexual preference for children (PPG) (MHT)
Sexual Interests (SOTIPS)
Sexualized violence (MHT)
Sexualized Violence (SRA)
Sexual Behavior (SOTIPS)
Sexual Attitudes (SOTIPS)
D 12 Sexual offending cycle (VRS-SO)

IV. Attitudes, Schemas and Beliefs Domain

Acceptance of Responsibility (SOTIPS)
D5 Cognitive distortions (VRS-SO)
Offense-supportive attitudes (MHT)
Child Abuse Supportive Beliefs (SRA)
Excessive Sense of Entitlement (SRA)
Lack of Concern for Others (STABLE-2007)
(P) Callousness/lack of concern for others (MHT)
Callousness (SRA)
Machiavellianism (SRA)
(P) Machiavellianism (MHT)
Adversarial Sexual Attitudes (SRA)
(P) Hostility toward women (MHT)
Hostility toward Women (STABLE-2007)
Deceitful Women (SRA)
Emotional Congruence with Children (SRA)
Emotional ID with Children (STABLE-2007)
(P) Externalizing (MHT)
Grievance/hostility (MHT)
Grievance Thinking (SRA)

V. General Criminality Domain

Criminal and Rule-Breaking Attitudes (SOTIPS)
Criminal and Rule-Breaking Behavior (SOTIPS)
D4 Criminal personality (VRS-SO)
D6 Interpersonal aggression (VRS-SO)
D3 Offense planning (VRS-SO)
Cooperation with Community Supervision (SOTIPS)
Co-operation with Supervision (STABLE-2007)
D 14 Compliance w community supervision (VRS-SO)
Resistance to rules and supervision (MHT)
Cooperation with Treatment (SOTIPS)
D15 Treatment compliance (VRS-SO)
Stage of Change (SOTIPS)
Admission of Offense Behavior (SOTIPS)

* "MHT" Refers to Mann, R., Hanson, R.K., Thornton, D., [2010] Assessing Risk for Sexual Recidivism: Some Proposals on the Nature of Psychologically Meaningful Risk Factors. *Sexual Abuse: A Journal of Research and Treatment.* 22: 191-217 (P) = Promising

Appendix C.

Statement of Successful Treatment Completion

The following document is the statement of successful treatment completion, which has been provided to aid clinicians with the organization of their professional determination of successful treatment completion.

Statement of Successful Treatment Completion

This document verifies that the individual named below successfully completed the requirements of treatment at the California Sex Offender Management Board Certified Provider Agency named below.

Client Name:	Client Date of Birth: MM/DD/YYYY
Client CII #:	Client SSN:
Provider Agency Name:	
Provider Agency City:	Provider Agency Zip Code:
Independent Provider Name:	Provider Cert #:

Treatment was completed on:

Click here to enter a date.

_____

CASOMB Certified Independent Provider Signature

One original signed, and Two (2) copies of this document should be completed and a copy is to be provided to the following: One (1) original to the Supervising Agency, One (1) copy to the Client, One (1) copy to the Provider Agency File.

Note: For purposes of the CASOMB Sex Offender Treatment Provider Agency Requirements the term “successful treatment completion” is defined as having “demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan” at the time of release from treatment. When the client has successfully completed treatment he or she shall receive a statement of successful treatment completion. Provider agencies will submit a copy of the statement to the supervising agency, if any. Treatment completion does not mean that the client has successfully completed the sex offender management program, or that the client will never reoffend. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e., CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

KEEP THIS DOCUMENT
The client is required to keep this document until such time that he or she is no longer required to register.

Maintenance and Aftercare

The CASOMB has created this document to clarify the definitions of the Maintenance and Aftercare stages of treatment. CASOMB requires treatment providers to utilize the Risk, Need, Responsivity (RNR) principles when making decisions about placement in treatment and supervision. Treatment completion is an evidenced based "protective factor," and protective factors are associated with reduced risk (see Treatment Completion Guidelines, 2018). The risk principle states that the level and intensity of services should be matched to the individual's risk level.[1] Intensive services of a greater duration should be reserved for high-risk individuals and less intensive services of a shorter duration should be reserved for low-risk individuals. The separation of services by risk level ensures that we are not over treating individuals and further exposing low risk individuals in group therapy to antisocial attitudes and behaviors exhibited by higher risk individuals. Research indicates that too much treatment/intensive services, especially where they are exposed to higher risk individuals can result in negative outcomes, e.g., reduced motivation, increased burnout, and decreased access to prosocial activities or relationships.

- Discharge Planning starts at intake. The final determination regarding whether an individual has "completed" treatment should never come as a surprise to the client. Regular reviews of progress in which the treatment provider and client collaborate about the nature, goals, and objectives of treatment along with the criteria for assessing progress and completion are necessary (see Treatment Completion Guidelines, 2018-Principle 15).
- Evaluation of behavior change is an ongoing process that begins at the start of treatment and continues throughout their treatment program.
- CASOMB defines "successful treatment completion" as having demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan at the time of release from treatment (see Treatment Completion Guidelines, 2018).
- Treatment completion does not mean that the client has successfully completed supervision. When ACTIVE treatment ends, supervision and other elements may continue, e.g. monitoring, follow up sessions, polygraph testing, and risk assessments.

1. **The Maintenance Stage** is the final component of active treatment.[2] Per this stage, the individual has noted and addressed areas of risk and has established and maintained use of

[1] Andrews, D.A., Zinger, I., Hoge, R.D., Bonta, J., Gendreau, P., & Cullen, F.T. (1990). Does correctional treatment work? A clinically relevant and psychologically informed meta-analysis, *Criminology*, 28, 369-404.
[2] Active treatment is defined as the time period in which an individual is enrolled and participating in treatment. They have not successfully met their identified treatment goals/needs and have not yet received their Statement of Successful Treatment Completion. Focus during active treatment is on reduction of risk and introduction of and implementation of protective factors and healthy skill development.

healthy coping skills, emotion and sexual regulation skills, social skills, and problem-solving methods to increase prosocial behavior and interactions. The expectation of this final stage of active treatment is that the individual can apply learned skills and demonstrate sustained changes in thinking and behavior; and has completed the treatment curriculum. This stage also reflects a downward titration of services to coincide with the reduction of risk and increase of protective factors. This reduced service attendance allows for the individual to increasingly focus on the application of skills learned.

a. Decisions to move in or out of maintenance need to be discussed and agreed upon by the containment team (CT). The need to participate in maintenance and the duration on maintenance will depend on their level of present risk, development of protective factors, and use of developed skills.
b. Maintenance should be associated with a reduction in treatment dosage.
c. There should be an observable reduction in risk factors and an increase in protective factors.
d. If anyone on the CT is aware of current risk relevant behavior (supported by Acute-2007 assessment), then the individuals treatment plan can be adjusted, and treatment dosage increased as per the agreement among the CT team.
e. Once the CT decides that treatment expectations and goals, including risk reduction, have been met, discussion surrounding treatment completion will take place (see Treatment Completion Guidelines, 2018).

2. **The Aftercare** Stage begins when active treatment is completed. This change to a lower level of care may also reflect an end to supervision and that the individual is attending on-going-services voluntarily.

a. Continue to manage criminogenic needs with any of the following: a prosocial support team; 12-step programs; Circles of Support and Accountability (COSA); chaperone; or free-standing support group or community aftercare program.
b. Use prosocial support systems to manage stressors, e.g., stressors such as those associated with continued Post-Conviction Traumatic Stress (PCTS)[3]; loss of treatment relationships; community reentry; 290 registration; employment, housing, and travel issues; confrontation by community citizens; potential victim reconciliation and/or family reunification.

[3] Levenson, J.S., & Harris, D.A. (2024). The ripple Effects of Post-Conviction Traumatic Stress in People Required to Register as Sex Offenders and their Families. *Sexual Abuse,* 36(5), 572-602. https://doi.org/10.1177/10790632231191116